

THE SIKH GURDWARAS ACT, 1925

(VIII of 1925)

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[see section 35]

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TEXT

¹**THE SIKH GURDWARAS ACT, 1925**

(VIII of 1925)

[7 August 1925]

An
Act

to provide for the better administration of certain Sikh Gurdwaras and for inquiries into matters connected therewith.

Preamble.— **WHEREAS** it is expedient to provide for the better administration of certain Sikh Gurdwaras and for inquiries into matters and settlement of disputes connected therewith, and whereas the previous sanction of the Governor-General has been obtained to the passing of this Act, it is hereby enacted as follows:—

PART I
CHAPTER I
Preliminary

1. Short title, extent and commencement.— (1) This Act may be called the Sikh Gurdwaras Act, 1925.

(2) It extends to the Punjab.

(3) It shall come into force on such date² as the ³[Provincial Government] may by notification appoint in this behalf.

(4) The Sikh Gurdwaras and Shrines Act, 1922, is hereby repealed.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context—

(1) “Board” means the Board constituted under the provisions of Part III.

(2) “Commission” means the Judicial Commission constituted under the provisions of Part III.

(3) ⁴[(i)] “Committee” means a committee of management constituted under the provisions of Part III.

⁵[(ii)] “local committee” means a committee constituted under the provisions of section 85;]

(4) (i) “Office” means any office by virtue of which the holder thereof participates in the management or performance of public worship in a Gurdwara or in the

¹For Statement of Objects and Reasons, see Punjab Gazette, 1925, Extraordinary, dated 25th April, 1925; for the Report of the Select Committee, see Punjab Gazette, 1925, Extraordinary, dated 20th June, 1925, and for Proceedings in Council, see Punjab Legislative Council Debates, Volume VIII, pp. 1102-21, 1155 and 1295-97. The Act which was assented by the Acting Governor-General on the 28th July 1925 and published in the Punjab Gazette, Part I, dated August 7, 1925, at pp. 494-543.

²This Act came into force on first day of November 1925, vide Notification No.4288-S, dated 12th October 1925, published in the Punjab Gazette, Part I, dated October 16, 1925, at pp. 712-713.

³Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁴Renumbered by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated February 06, 1945, pp. 19-23, clause (a) of s. 2 and it cancelled the Punjab Government Notification No. 426-Leg., dated January 17, 1945, published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10.

⁵Added by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated February 06, 1945, pp. 19-23, clause (a) of s. 2.

management or performance of any rituals or ceremonies observed therein: and “office-holder” means any person who holds an office.

- (ii) “Present office-holder” means a person who, on the commencement of this Act, holds an office.
- (iii) “Past office-holder” means a person who has been an office-holder but ceased to be an office-holder before the commencement of this Act.
- (iv) “Hereditary office” means an office the succession to which before the first day of January 1920 devolved, according to hereditary right or by nomination by the office-holder for the time being, and “hereditary office-holder” means the holder of a hereditary office.
- (v) “Present hereditary office-holder” means a person who on the commencement of this Act is a hereditary office-holder.
- (vi) “Past hereditary office-holder” means a person who has been a hereditary office-holder but ceased to be such office-holder before the commencement of this Act.
- (vii) “Minister” means an office-holder to whom either solely or along with other the control of the management or performance of public worship in a gurdwara and of the rituals and ceremonies, observed therein is entrusted.

(5) “Police Station area” means a local area specified by the ¹[Provincial Government] under the provisions of clause(s) of sub-section (1) of section 4 of the Code of Criminal Procedure, 1898.

(6) “Prescribed” means prescribed by the ²[Provincial Government] by rules made under this Act.

(7) “Presumptive successor” where the succession to the office devolves according to hereditary right, means the person next in succession to a hereditary office-holder, or, where the succession to the office devolves by nomination made by the hereditary office-holder for the time being, means any chela so nominated before the first day of December, 1924.

(8) “Resident” in any place means any person having a fixed place of abode or owning immovable property or cultivating land or practising a profession, or carrying on business, or personally working for gain, in that place.

³[(9) “Sikh” means a person who professes the Sikh religion, or, in the case of a deceased person, who professed the Sikh religion or was known to be a Sikh during his life time. If any question arises as to whether any living person is or is not a Sikh, he shall be deemed respectively to be or not to be a Sikh according as he makes or refuses to make in such manner as the ⁴[Provincial Government] may prescribe the following declaration:-

‘I solemnly affirm that I am a Sikh, that I believe in the Guru Granth Sahib, that I believe in the Ten Gurus and that I have no other religion.’]

¹Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²*Ibid.*

³Substituted by the Sikh Gurdwaras (Amendment) Act, 1930 (III of 1930), vide Notification No. 116, dated 8th October 1930, published in the Punjab Gazette (Extraordinary), dated October 10, 1930, pp. 107-108, s. 2.

⁴Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹[(10) “Amritdhari Sikh” means and includes every person who has taken khande-ka-amrit or khanda pahul prepared and administered according to the tenets of Sikh religion and rites, at the hands of five pyaras or ‘beloved ones’;

(11) “Patit” means a person who being a keshadhari Sikh trims or shaves his beard or keshas or who after taking amrit commits any one or more of the kurahits.]

²[(12)] “Notified Sikh Gurdwara” means any Gurdwara declared by notification by the ³[Provincial Government] under the provisions of this Act to be a Sikh Gurdwara.

⁴[(13)] “Treasury” means a Government Treasury or sub-treasury and includes any bank to which the Government Treasury business has been made over.

⁵[(14)] “Tribunal” means a tribunal constituted under the provisions of section 12.

CHAPTER II

Petitions to ⁶[Provincial Government] relating to gurdwaras

3. List of property of scheduled Gurdwara to be forwarded to the ⁷[Provincial Government].— (1) Any Sikh or any present office-holder of a gurdwara specified in Schedule I may forward to the ⁸[Provincial Government] through ⁹[the appropriate Secretary to Government], so as to reach the Secretary within ninety days from the commencement of this Act, a list, signed and verified by himself, of all rights, titles or interests in immovable properties situated in the Punjab inclusive of the gurdwara and in all monetary endowments yielding recurring income or profit received in the Punjab which he claims to belong, within his knowledge, to the gurdwara; the name of the person in possession of any such right, title or interest, and if any such person is insane or a minor, the name of his legal or natural guardian, or if there is no such guardian, the name of the person with whom the insane person or minor resides or is residing, or if there is no such person, the name of the person actually or constructively in possession of such right, title or interest on behalf of the insane person or minor, and if any such right, title or interest is alleged to be in possession of the gurdwara through any person, the name of such person, shall be stated in the list: and the list shall be in such form and shall contain such further particulars as may be prescribed.

(2) **Declaration of scheduled Gurdwara and publication of list forwarded under sub-section (1) in a consolidated list.**— On receiving a list duly forwarded under the provisions of sub-section (1) the ¹⁰[Provincial Government] shall, as soon as may be, publish a notification declaring that the gurdwara to which it relates is a Sikh Gurdwara and, after the expiry of the period provided in sub-section (1) for forwarding lists, shall, as soon as may be, publish by notification a consolidated list in which all rights, titles and interests in any such

¹Inserted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, clause (b) of s. 2.

²Renumbered by the Act *ibid*.

³Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁴Renumbered by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, clause (b) of s. 2.

⁵Renumbered by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, clause (b) of s. 2.

⁶Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁷*Ibid*.

⁸*Ibid*.

⁹Substituted for the words “the Secretary to Government, Transferred Departments” by the Order *ibid*.

¹⁰Substituted for the words “Local Government” by the Order *ibid*.

properties as are described in sub-section (1) which have been included in any list duly forwarded, shall be included, and shall also cause the consolidated list to be published, in such manner as may be prescribed, at the headquarters of the district and of the tahsil and in the revenue estate where the gurdwara is situated, and at the headquarters of every district and of every tahsil and in every revenue estate in which any of the immovable properties mentioned in the consolidated list is situated and shall also give such other notice thereof as may be prescribed.

(3) **Notices of claims to property entered in the consolidated list to be sent to persons shown as in possession.**— The ¹[Provincial Government] shall also, as soon as may be, send by registered post a notice of the claim to any right, title or interest included in the consolidated list to each of the persons named therein as being in possession of such right, title or interest either on his own behalf or on behalf of an insane person or minor or on behalf of the gurdwara, provided that no such notice need be sent if the person named as being in possession is the person who forwarded the list in which the right, title or interest was claimed.

(4) **Effect of publication of declaration and consolidated list under sub-section (2).**— The publication of a declaration and of a consolidated list under the provisions of sub-section (2) shall be conclusive proof that the provisions of sub-sections (1), (2) and (3) with respect to such publication have been duly complied with and that the gurdwara is a Sikh Gurdwara, and the provisions of Part III shall apply to such gurdwara with effect from the date of the publication of the notification declaring it to be a Sikh Gurdwara.

4. **Effect of omission to forward a list under section 3.**— If in respect of any gurdwara specified in Schedule I no list has been forwarded under the provisions of sub-section (1) of section 3, the ²[Provincial Government] shall, after the expiry of ninety days from the commencement of this Act, declare by notification that such gurdwara shall be deemed to be excluded from specification in Schedule I.

5. **Petitions of claim to property included in a consolidated list.**— (1) Any person may forward to the ³[Provincial Government] through ⁴[the appropriate Secretary to Government], so as to reach the Secretary within ninety days from the date of the publication by notification of the consolidated list under the provisions of sub-section (2) of section 3, a petition claiming a right, title or interest in any property included in such consolidated list except a right, title or interest in the gurdwara itself.

(2) **Signing and verification of petitions under sub-section (1).**— A petition forwarded under the provisions of sub-section (1) shall be signed and verified by the person forwarding it in the manner provided in the Code of Civil Procedure, 1908⁵, for the signing and verification of plaints, and shall specify the nature of the right, title or interest claimed and the grounds of the claim.

(3) **Notification of property not claimed under sub-section (1), and effect of such notification.**— The ⁶[Provincial Government] shall, as soon as may be, after the expiry of the period for making a claim under the provisions of sub-section (1) publish a notification specifying the rights, title or interest in any properties in respect of which no such claim has

¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²*Ibid.*

³*Ibid.*

⁴Substituted for the words "the Secretary to Government, Transferred Departments" by the Order *ibid.*

⁵V of 1908.

⁶Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

been made; and the publication of the notification shall be conclusive proof of the fact that no such claim was made in respect of any right, title or interest specified in the notification.

6. Claim for compensation by a hereditary office-holder of a Notified Sikh Gurdwara or his presumptive successor.— (1) Any past or present hereditary office-holder of a gurdwara in respect of which a notification has been published under the provisions of sub-section (2) of section 3 declaring it to be a Sikh Gurdwara or a presumptive successor of such office-holder may forward to the ¹[Provincial Government] through ²[the appropriate Secretary to Government], so as to reach the Secretary within ninety days from the date of the publication of such notification, a petition claiming to be awarded compensation on the grounds that such office-holder has been unlawfully removed from his office after the first day of January 1920 and before the date of the publication of the notification, and that such office-holder or his presumptive successor has suffered or will suffer pecuniary loss in consequence of the gurdwara having been declared to be a Sikh Gurdwara.

(2) **Signing and verification of petitions under sub-section (1).**— A petition forwarded under the provisions of sub-section (1) shall be signed and verified by the person forwarding it in the manner provided in the Code of Civil Procedure, 1908³, for the signing and verification of plaints.

7. Petition to have a gurdwara declared a Sikh Gurdwara.— (1) Any fifty or more Sikh worshippers of a gurdwara, each of whom is more than twenty-one years of age and was on the commencement of this Act a resident in the police station area in which the gurdwara is situated, may forward to the ⁴[Provincial Government] through ⁵[the appropriate Secretary to Government], so as to reach the Secretary within one year from the commencement of this Act or within such further period as the ⁶[Provincial Government] may by notification fix for this purpose, a petition praying to have the gurdwara declared to be a Sikh Gurdwara:

Provided that the ⁷[Provincial Government] may in respect of any such gurdwara declare by notification that a petition shall be deemed to be duly forwarded whether the petitioners were or were not on the commencement of this Act residents in the police-station area in which such gurdwara is situated, and shall thereafter deal with any petition that may be otherwise duly forwarded in respect of any such gurdwara as if the petition had been duly forwarded by petitioners who were such residents:

Provided further that no such petition shall be entertained in respect of any institution specified in Schedule I or Schedule II unless the institution is deemed to be excluded from specification in Schedule I under the provisions of section 4.

(2) **List of property claimed for the gurdwara and of persons in possession thereof to accompany a petition under sub-section (1).**— A petition forwarded under the provisions of sub-section (1) shall state name of the gurdwara to which it relates and of the district, tahsil and revenue estate in which it is situated, and shall be accompanied by a list, verified and signed by the petitioners, of all rights, titles or interests in immovable properties situated in the Punjab inclusive of the gurdwara and in all monetary endowments yielding recurring income or profit received in the Punjab, which the petitioners claim to belong within their knowledge to the gurdwara: the name of the person in possession of any such right, title or interest, and if any such person is insane or a minor, the name of his legal or natural

¹*Ibid.*

²Substituted for the words “the Secretary to Government, Transferred Departments” by the Order *ibid.*

³V of 1908.

⁴Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁵Substituted for the words “the Secretary to Government, Transferred Departments” by the Order *ibid.*

⁶Substituted for the words “Local Government” by the Order *ibid.*

⁷*Ibid.*

guardian, or if there is no such guardian, the name of the person with whom the insane person or minor resides or is residing, or if there is no such person, the name of the person actually or constructively in possession of such right, title or interest on behalf of the insane person or minor, and if any such right, title or interest is alleged to be in possession of the gurdwara through any person, the name of such person, shall be stated in the list; and the petition and the list shall be in such form and shall contain such further particulars as may be prescribed.

(3) **Publication of petition and list received under sub-sections (1) and (2).—** On receiving a petition duly signed and forwarded under the provisions of sub-section (1) the ¹[Provincial Government] shall, as soon as may be, publish it along with the accompanying list, by notification, and shall cause it and the list to be published, in such manner as may be prescribed, at the headquarters of the district and of the tahsil and in the revenue estate in which the gurdwara is situated, and at the headquarters of every district and of every tahsil and in every revenue estate in which any of the immovable properties mentioned in the list is situated and shall also give such other notice thereof as may be prescribed:

²[Provided that such petition may be withdrawn by notice to be forwarded by the Board so as to reach the ³[appropriate Secretary to Government], at any time before publication, and on such withdrawal it shall be deemed as if no petition had been forwarded under the provisions of sub-section (1)].

(4) **Notice of claims to property to be sent to persons shown in the list as in possession.—** The ⁴[Provincial Government] shall also, as soon as may be, send by registered post a notice of the claim to any right, title or interest included in the list to each of the persons named therein as being in possession of such right, title or interest either on his own behalf or on behalf of an insane person or minor or on behalf of the gurdwara:

Provided that no such notice need be sent if the person named as being in possession is a person who joined in forwarding the list.

(5) **Effect of publication of petition and list under sub-section (3).—** The publication of a notification under the provisions of sub-section (3) shall be conclusive proof that the provisions of sub-sections (1), (2), (3) and (4) have been duly complied with.

8. Petition to have it declared that a place asserted to be a Sikh Gurdwara is not such a gurdwara.— When a notification has been published under the provisions of sub-section (3) of section 7 in respect of any gurdwara, any hereditary office-holder or any twenty or more worshippers of the gurdwara, each of whom is more than twenty-one years of age and was on the commencement of this Act a resident of a police-station area in which the gurdwara is situated, may forward to the ⁵[Provincial Government] through ⁶[the appropriate Secretary to Government], so as to reach the Secretary within ninety days from the date of the publication of the notification, a petition signed and verified by the petitioner or petitioners, as the case may be, claiming that the Gurdwara is not a Sikh Gurdwara, and may in such petition make a further claim that any hereditary office-holder or any person who would have succeeded to such office-holder under the system of management prevailing

¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²Added by the Sikh Gurdwaras (Amendment) Act, 1932 (IV of 1932), published in the Punjab Gazette, Part I, dated December 16, 1932, at p. 1256, s. 2. It came into force on 1st January, 1933, vide Notification No. 2695(II)G/Gurdwara, dated 19th December, 1932, published in the Punjab Gazette, Part I, dated December 23, 1932, p. 1271.

³Substituted for the words "the Secretary to Government, Punjab, Transferred Departments" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁴Substituted for the words "Local Government" by the Order *ibid*.

⁵Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁶Substituted for the words "the Secretary to Government, Transferred Departments" by the Order *ibid*.

before the first day of January 1920 may be restored to office on the grounds that such gurdwara is not a Sikh Gurdwara and that such office-holder ceased to be an office-holder after that day:

Provided that the ¹[Provincial Government] may in respect of any such gurdwara declare by notification that a petition of twenty or more worshippers of such gurdwara shall be deemed to be duly forwarded whether the petitioners were or were not on the commencement of this Act residents in the police-station area in which such gurdwara is situated, and shall thereafter deal with any petition that may be otherwise duly forwarded in respect of any such gurdwara as if the petition had been duly forwarded by petitioners who were such residents.

9. Effect of omission to present a petition under section 8.— (1) If no petition has been presented in accordance with the provisions of section 8 in respect of a gurdwara to which a notification published under the provisions of sub-section (3) of section 7 relates, the ²[Provincial Government] shall, after the expiration of ninety days from the date of such notification, publish a notification declaring the gurdwara to be a Sikh Gurdwara.

(2) **Effect of publication of a notification under sub-section (1).**— The publication of a notification under the provisions of sub-section (1) shall be conclusive proof that the gurdwara is a Sikh Gurdwara, and the provisions of Part III shall apply to the gurdwara with effect from the date of the publication of the notification.

10. Petition of claim to property included in a list published under sub-section (3) of section 7.— (1) Any person may forward to the ³[Provincial Government] through ⁴[the appropriate Secretary to Government], so as to reach the Secretary within ninety days from the date of the publication of a notification under the provisions of sub-section (3) of section 7, a petition claiming a right, title or interest in any property included in the list so published.

(2) **Signing and verification of petitions under sub-section (1).**— A petition forwarded under the provisions of sub-section (1) shall be signed and verified by the person forwarding it in the manner provided by the Code of Civil Procedure, 1908⁵, for the signing and verification of plaints, and shall specify the nature of the right, title or interest claimed and the grounds of the claim.

(3) **Notification of property not claimed under sub-section (1), and effect of such notification.**— The ⁶[Provincial Government] shall, as soon as may be, after the expiry of the period for making a claim under the provisions of sub-section (1) publish a notification, specifying the rights, titles or interests in any properties in respect of which no such claim has been made, and the notification shall be conclusive proof of the fact that no such claim was made in respect of any right, title or interest specified in the notification.

11. Claim for compensation by a hereditary office-holder of a gurdwara notified under section 7 or his presumptive successor.— (1) Any past or present hereditary office-holder of a gurdwara in respect of which a notification has been published under the provisions of sub-section (3) of section 7 or a presumptive successor of such office-holder may forward to the ⁷[Provincial Government] through ¹[the appropriate Secretary to

¹Substituted for the words "Local Government" by the Order *ibid*.

²*Ibid*.

³Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁴Substituted for the words "the Secretary to Government, Transferred Departments" by the Order *ibid*.

⁵V of 1908.

⁶Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁷*Ibid*.

Government], so as to reach the Secretary within ninety days from the date of such publication, a petition claiming to be awarded compensation on the grounds that such office-holder has been unlawfully removed from his office after the first day of January 1920 and before the date of such publication, and that such office-holder or his presumptive successor has suffered or will suffer pecuniary loss if the gurdwara is declared to be a Sikh Gurdwara.

(2) **Signing and verification of petitions under sub-section (1).**— A petition forwarded under the provisions of sub-section (1) shall be signed and verified by the person forwarding it in the manner provided in the Code of Civil Procedure, 1908², for the signing and verification of plaints.

CHAPTER III **Appointment of and proceedings** **before a tribunal**

12. Constitution and procedure of tribunal for the purposes of the Act.— (1) For the purpose of deciding claims made in accordance with the provisions of this Act the ³[Provincial Government] may from time to time by notification direct the constitution of a tribunal or more tribunals than one and may in like manner direct the dissolution of such tribunal or tribunals.

(2) A tribunal shall consist of a president ⁴[* * *] and two other members appointed by notification by the ⁶[Provincial Government].

(3) The president of a tribunal shall be a Judge of the High Court and each other member shall be—

- (i) a District Judge or a Subordinate Judge of the first class, or
- (ii) a barrister of not less than ten years' standing, or
- (iii) a person who has been a pleader of any High Court ⁷[or any court which is a High Court within the meaning of clause (24) of section 3 of the General Clauses Act, 1897,] for an aggregate period of not less than ten years.

(4) The members of a tribunal while they continue as such, shall be paid by the ⁸[Provincial Government] such remuneration as may from time to time be fixed by the ⁹[Provincial Government] ¹⁰[* * *] and shall be deemed to be public servants within the meaning of section 21 of the Indian Penal Code².

¹Substituted for the words "the Secretary to Government, Transferred Departments" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²V of 1908.

³Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁴Inserted by the Sikh Gurdwaras (Supplimentary) Act, 1925 (XXIV of 1925), published in the Gazette of India, Part IV, dated September 19, 1925, p. 48, clause (a) of s. 3. This amendment has been given retrospective effect by s. 3 of the Sikh Gurdwaras (Second Amendment) Act, 1926 (XIII of 1926) (w.e.f. 1.11.1925).

⁵Omitted the words "appointed by notification by the Governor-General in Council" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule VI.

⁶Substituted for the words "Local Government" by the Order *ibid.*, Article 4(1) read with Table of General Adaptations.

⁷Inserted by the Sikh Gurdwaras (Second Amendment) Act, 1926 (XIII of 1926), vide Notification No. 86, dated 30th November, 1926, published in the Punjab Gazette, Part I, dated December 3, 1926, p. 1183, s. 2. This amendment has been given retrospective effect by s. 3 of the Sikh Gurdwaras (Second Amendment) Act, 1926 (XIII of 1926) (w.e.f. 1.11.1925).

⁸Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁹*Ibid.*

¹⁰Inserted by the Sikh Gurdwaras (Supplimentary) Act, 1925 (XXIV of 1925), published in the Gazette of India, Part IV, dated September 19, 1925, p. 48, clause (b) of s. 3.

(5) ³[* * * * *]

(6) Whenever a vacancy occurs in a tribunal by reason of the removal, resignation or death of a member ⁴[* * * * *], the ⁶[Provincial Government] shall by notification appoint a person qualified within the meaning of sub-section (3) to fill the vacancy.

(7) A change in the membership of a tribunal under the provisions of sub-section (5) or sub-section (6) shall not invalidate any previous or subsequent proceedings in any matter pending before it, nor shall it be necessary for a tribunal on account of such change to recommence any enquiry into any matter pending before it for disposal.

(8) The ⁷[Provincial Government] may from time to time appoint such officers and servants as it may deem to be necessary for the due performance of its duties by a tribunal; and the officers and servants so appointed shall, while they continue as such, be deemed to be public servants within the meaning of section 21 of the Indian Penal Code⁸.

(9) A tribunal, for the purpose of deciding any matter that it is empowered to decide under the provisions of this Act, shall have the same powers as are vested in a court by the Code of Civil Procedure, 1908⁹, and shall have jurisdiction, unlimited as regards value, throughout the Punjab, and shall have no jurisdiction over any proceedings other than is expressly vested in it by this Act.

(10) Save as otherwise provided in this Act a decree or order of a tribunal shall be executed or otherwise given effect to by the district court of the district in which the gurdwara in connection with which the decree or order was passed is situated, or by the district court to which the tribunal directs that any decree or order shall be sent for this purpose, as if the decree or order had been a decree or order passed by such court.

(11) The proceedings of a tribunal shall so far as may be, and subject to the provisions of this Act, be conducted in accordance with the provisions of the Code of Civil Procedure, 1908¹⁰.

(12) If more tribunals than one are constituted, the ¹¹[Provincial Government] may by notification direct which tribunal may entertain petitions relating to a particular gurdwara or gurdwaras situated in any specified area, and may at any time transfer any proceedings from one tribunal to another as it may deem proper.

13. Procedure on difference of opinion.— (1) No proceedings shall be taken by a tribunal unless at least two members are present, provided that notices and summonses may be issued by the president or a member nominated by the president for this purpose.

¹Omitted the words "or in the case of the President by the Governor-General in Council" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule.

²XLV of 1860.

³Omitted by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule.

⁴Inserted by the Sikh Gurdawaras (Supplimentary) Act, 1925 (XXIV of 1925), published in the Gazette of India, Part IV, dated September 19, 1925, p. 48, clause (d) of s. 3.

⁵Omitted the words "the Governor-General in Council where the vacancy occurs in the office of President and in any other case" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule.

⁶Substituted for the words "Local Government" by the Order *ibid.*, Article 4(1) read with Table of General Adaptations.

⁷*Ibid.*

⁸XLV of 1860.

⁹V of 1908.

¹⁰V of 1908.

¹¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

(2) In case of a difference of opinion between the members of a tribunal, the opinion of the majority shall prevail; provided that if only two members are present of whom one is the president, and if they are not in agreement, the opinion of the president shall prevail; and if the president be not present, and the two remaining members are not agreed, the question in dispute shall be kept pending until the next meeting of the tribunal at which the president is present: the opinion of the majority, or of the president when only two members are present, shall be deemed to be the opinion of the tribunal.

14. Tribunal to dispose of petitions under sections 5, 6, 8, 10 and 11.— (1) The ¹[Provincial Government] shall forward to a tribunal all petitions received by it under the provisions of sections 5, 6, 8, 10 or 11, and the tribunal shall dispose of such petitions by order in accordance with the provisions of this Act.

(2) The forwarding of the petitions shall be conclusive proof that the petitions were received by the ²[Provincial Government] within the time prescribed in section 5, 6, 8, 10 or 11 as the case may be, and in the case of a petition forwarded by worshippers of a gurdwara under the provisions of section 8, shall be conclusive proof that the provisions of section 8 with respect to such worshippers were duly complied with.

15. Power of tribunal to join parties and award costs.— (1) In disposing of any matter in which it has jurisdiction a tribunal may order any dispute arising therefrom to be dealt with in one proceeding separately or more such disputes than one to be dealt with in one proceeding, and may by public advertisement or otherwise, enquire if any person desires to be made a party to any proceeding, and may join in any proceeding any person who it considers ought to be made a party thereto.

(2) The tribunal may order any person to submit within a fixed time a statement in writing setting forth the nature of his claim or objection and the grounds thereof.

(3) If any person fails to comply with an order passed under the provisions of sub-section (2) and duly notified to him, the tribunal may decide the matter in dispute against him: provided that the tribunal may at any time extend the time fixed by its order for the submission of the statement if the person satisfies it that he had sufficient cause for not submitting the statement within the time fixed.

(4) A tribunal may pass any such order as to costs of a proceeding as a court might pass under the provisions of the Code of Civil Procedure, 1908³.

16. Issue as to whether a gurdwara is a Sikh Gurdwara to be decided first and how issue is to be decided.— (1) Notwithstanding anything contained in any other law in force, if in any proceeding before a tribunal it is disputed that a gurdwara should or should not be declared to be a Sikh Gurdwara, the tribunal shall, before enquiring into any other matter in dispute relating to the said gurdwara decide whether it should or should not be declared a Sikh Gurdwara in accordance with the provisions of sub-section (2).

(2) If the tribunal finds that the gurdwara—

(i) was established by, or in memory of any of, the Ten Sikh Gurus, or in commemoration of any incident in the life of any of the Ten Sikh Gurus, and

¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²*Ibid.*

³V of 1908.

- ¹[was used] for public worship by Sikhs ²[before and at the time of the presentation of the petition under sub-section (1) of section 7], or
- (ii) owing to some tradition connected with one of the Ten Sikh Gurus, ³[was used] for public worship predominantly by Sikhs ⁴[before and at the time of the presentation of the petition under sub-section (1) of section 7], or
 - (iii) was established for use by Sikhs for the purpose of public worship and ⁵[was used] for such worship by Sikhs ⁶[before and at the time of the presentation of the petition under sub-section (1) of section 7], or
 - (iv) was established in memory of a Sikh martyr, saint or historical person and ⁷[was used] for public worship by Sikhs ⁸[before and at the time of the presentation of the petition under sub-section (1) of section 7], or
 - (v) owing to some incident connected with the Sikh religion ⁹[was used] for public worship predominantly by Sikhs, ¹⁰[before and at the time of the presentation of the petition under sub-section (1) of section 7], the tribunal shall decide that it should be declared to be a Sikh Gurdwara, and record an order accordingly.

(3) Where the tribunal finds that a gurdwara should not be declared to be a Sikh Gurdwara, it shall record its finding in an order and, subject to the finding of the High Court on appeal, it shall cease to have jurisdiction in all matters concerning such Gurdwara, provided that, if a claim has been made in accordance with the provisions of section 8 praying for the restoration to office of a hereditary office-holder or person who would have succeeded such office-holder under the system of management prevailing before the first day of January 1920, the tribunal shall, notwithstanding such finding, continue to have jurisdiction in all matters relating to such claim, and, if the tribunal finds it proved that such office-holder ceased to be an office-holder on or after the first day of January 1920, it may by order direct that such office-holder or person who would have so succeeded be restored to office.

17. Notification of Sikh Gurdwara on finding of tribunal.— When a tribunal has, under the provisions of sub-section (2) of section 16, recorded a finding that a gurdwara should be declared to be a Sikh Gurdwara, and no appeal has been instituted against such finding within the period prescribed by section 34, or when an appeal has been instituted and dismissed, or when in an appeal against a finding that a gurdwara should not be declared to be a Sikh Gurdwara the High Court finds that it should be so declared, the tribunal or the High Court, as the case may be, shall inform the ¹¹[Provincial Government] through ¹²[the appropriate Secretary to Government], accordingly, and the ¹³[Provincial Government] shall, as soon as may be, publish a notification declaring such gurdwara to be a Sikh Gurdwara,

¹Substituted for the words "is used" by the Sikh Gurdwaras (Amendment) Act, 1930 (III of 1930), vide Notification No. 116, dated 8th October 1930, published in the Punjab Gazette (Extraordinary), dated October 10, 1930, pp. 107-108, clause (i) of s. 3.

²Inserted by the Act *ibid.*, clause (ii) of s. 3.

³Substituted for the words "is used" by the Act *ibid.*, clause (i) of s. 3.

⁴Inserted by the Act *ibid.*, clause (ii) of s. 3.

⁵Substituted for the words "is used" by the Act *ibid.*, clause (i) of s. 3.

⁶Inserted by the Act *ibid.*, clause (iii) of s. 3.

⁷Substituted for the words "is used" by the Act *ibid.*, clause (i) of s. 3.

⁸Inserted by the Act *ibid.*, clause (ii) of s. 3.

⁹Substituted for the words "is used" by the Act *ibid.*, clause (i) of s. 3.

¹⁰Inserted by the Act *ibid.*, clause (ii) of s. 3.

¹¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹²Substituted for the words "the Secretary to Government, Transferred Departments" by the Order *ibid.*

¹³Substituted for the words "Local Government" by the Order *ibid.*

and the provisions of Part III shall apply thereto with effect from the date of the publication of such notification.

18. Presumption in favour of a Notified Sikh Gurdwara on proof of certain facts when a claim to property is made by an office-holder.— (1) In any proceedings before a tribunal, if any past or present office-holder denies that a right, title or interest recorded, in his name or in that of any person through whom he claims, in a record-of-rights, or in an annual record, prepared in accordance with the provisions of the Punjab Land Revenue Act, 1887¹, and claimed to belong to a Notified Sikh Gurdwara, does so belong, and claims such right, title or interest to belong to himself, there shall, notwithstanding anything contained in section 44 of the said Act, be a presumption that such right, title or interest belongs to the gurdwara upon proof of any of the following facts, namely—

- (a) an entry of the right, title or interest made before the first day of January 1920, in a record-of-rights, prepared at the time of a general assessment of the land revenue, in the name of the gurdwara or in the name of the holder of an office pertaining to the gurdwara as such and not by name;
- (b) an assignment of the land revenue of, or of the proprietary right in, land at any time for the service or maintenance of the gurdwara notwithstanding that the assignment may be or may have been in the name of an office-holder, where the right claimed is an assignment of the land revenue of, or of the proprietary right in, the land, as the case may be;
- (c) the dismissal or removal of an office-holder before the first day of January 1920 and the consequent transfer of the right in question to his successor in office;
- (d) the expenditure of the whole or part of the income derived from the right, title or interest in question ordinarily on the service or maintenance of the gurdwara;
- (e) the acquisition of the right, title or interest in question from funds proved to have belonged to the gurdwara;
- (f) the submission by the office-holder or any of his predecessors in office of accounts relating to the income from the right, title or interest in question to the worshippers or to a managing body;
- (g) the devolution of the succession to the right, title or interest in question from an office-holder to the successor in office as such on two or more consecutive occasions;
- (h) any other fact which shows that the right, title or interest in question was at any time of the nature of a trust pertaining to the gurdwara or was purchased from funds of the nature of trust funds pertaining to the gurdwara.

(2) The provisions of sub-section (1) shall also apply to a claim to a right, title or interest made by any person deriving title subsequent to the first day of January 1920 from a past or present office-holder.

19. Adjudication by tribunal upon agreements made between office-holder and persons acting on behalf of a Sikh Gurdwara.— Where a change in the system of management of a Notified Sikh Gurdwara has occurred on or after the first day of January 1920, and as a consequence of or in connection with such change, it is alleged that an agreement has been made between any person who was an office-holder under the former system of management on the one side, and the Sikh worshippers of the gurdwara or a

¹XVII of 1887.

person or body acting on their behalf on the other side, any person who claims any right, title or interest by virtue of such agreement or any present office-holder of the gurdwara or any Sikh may, within ninety days from the date of the publication of the notification declaring such gurdwara to be a Sikh Gurdwara, present a petition to a tribunal praying that the agreement be considered, and the tribunal shall make an enquiry, and if it finds that a valid agreement was made it shall, notwithstanding anything contained in the Indian Registration Act, 1908¹, or the Indian Stamp Act, 1899², pass such orders as may be necessary to give effect to the agreement, and may by such orders create a charge on the property or income of the gurdwara.

20. Claim for compensation by a hereditary office-holder who has resigned or been dismissed.— Any hereditary office-holder of a Notified Sikh Gurdwara who, within twelve months after the date of the publication of a notification declaring the gurdwara to be a Sikh Gurdwara, has resigned office, or been removed from office otherwise than in accordance with the provisions of section 134 or under the provisions of section 142 or a presumptive successor of such office-holder, may, within ninety days from the date of the resignation or removal, as the case may be, of such office-holder present a petition to a tribunal claiming to be awarded compensation on the ground that he has suffered or will suffer pecuniary loss owing to a change in the management of the gurdwara, and the tribunal may, notwithstanding the fact that such office-holder has voluntarily resigned, order compensation to be paid in accordance with the provisions of this Act, as if such office-holder had been unlawfully removed from his office.

21. Claim for compensation by person alleging right to nominate office-holder of a Notified Sikh Gurdwara.— When a notification has been published under the provisions of this Act declaring a gurdwara to be a Sikh Gurdwara any person claiming that the right to nominate an office-holder thereof was vested in him at the date of the publication, or before the first day of January 1920, may within ninety days from the date of the publication present a petition to a tribunal claiming to be awarded compensation on the ground that he has suffered pecuniary loss owing to a change effected after the first day of January 1920 in the system of management of such gurdwara, or that he will suffer pecuniary loss in consequence of the gurdwara being declared to be a Sikh Gurdwara; and the tribunal may order compensation to be paid to him in the same manner as to an office-holder under the provisions of this Act.

22. Matters for consideration in awarding compensation.— In deciding claims for compensation made under the provisions of sections 6, 11 or 20 a tribunal—

- (1) may among other matters take into consideration—
 - (i) the past conduct of the claimant;
 - (ii) the improvements to the property of the gurdwara effected by the claimant;
 - (iii) the portion of the trust income which, by long practice and the express or implied consent of the worshippers, the holder of the office and his predecessors have been allowed to appropriate to their private use: provided that this matter, if taken into consideration, shall only be so taken in determining the compensation due to an office-holder for his lifetime and shall not give to a presumptive successor of such office-holder any right to increased compensation: and provided also that the tribunal shall not be bound to fix the compensation on the basis of such income, but may, at its discretion, regard such income as a

¹XVI of 1908.

²II of 1899.

ground for awarding compensation on a higher scale than it would otherwise have awarded;

(2) shall take into consideration—

- (i) the past conduct of the claimant where such conduct has been or is in issue in a suit or other proceeding in a Civil or Revenue Court instituted before the 1st December 1924;
- (ii) the conviction of the claimant by a Criminal Court for an offence which, in the opinion of the tribunal, involves moral turpitude or an order passed against him under the provisions of sections 110 and 118 of the Code of Criminal Procedure, 1898¹;
- (iii) the loss of income, not being of the nature of trust income, incurred by reason of an office-holder ceasing to hold office;
- (iv) all rights or privileges relating to residence, subsistence, service and other recognised allowances in cash or kind formerly enjoyed by the claimant.

23. Compensation to be paid annually out of income of gurdwara.— In awarding compensation a tribunal shall, unless the parties agree to its being paid otherwise, order it to be paid out of the income accruing to the gurdwara in which the office-holder held office in the form of an allowance payable annually on a specified date, for any period but terminable in any case on the death of the person compensated.

24. Payment to heirs of person compensated.— If any person to whom compensation has been ordered to be paid by a tribunal dies, his heir shall be entitled only to such sum as has become payable under the order but has not been paid: provided that if compensation was ordered to be made by payment of an annual allowance for a period which has not expired before the death of the person compensated, such heir shall in addition be entitled to a sum which bears the same proportion to the amount of such allowance as the period between the date on which the allowance was last payable before the death of the deceased and the date of his death bears to one year.

25. Manner in which compensation is to be paid and recovered if not duly paid.— Every sum ordered by a tribunal to be paid out of the income of a gurdwara by way of compensation shall be deposited in the treasury of the tahsil in which the gurdwara is situated, and shall be paid to the person or persons entitled to it under such order or under the provisions of section 24 in such manner as may be prescribed, and if it is not so deposited shall be recoverable out of the ²[income of such gurdwara or by way of temporary alienation of the agricultural land of such gurdwara for a period which the Collector may determine].

³[**25-A. Power of tribunal to pass decrees for possession in favour of the committees of Gurdwaras.**— (1) When it has been decided under the provisions of this Act that right, title or interest in immovable property belongs to a Notified Sikh Gurdwara, or any person the Committee of the Gurdwara concerned or the person in whose favour a declaration has been made may, within a period of one year from the date of the decision or the date of the constitution of the Committee, whichever is later, institute a suit before a tribunal claiming to be

¹V of 1898.

²Substituted for the words "property or income of such gurdwara by the Collector as it were an area of land revenue" by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 3.

³Inserted by the Sikh Gurdwaras (Amendment) Act, 1930 (III of 1930), vide Notification No. 116, dated 8th October 1930, published in the Punjab Gazette (Extraordinary), dated October 10, 1930, pp. 107-108, s. 4.

awarded, possession of the right, title or interest in the immovable property in question as against the parties to the previous petition, and the tribunal shall if satisfied that the claim relates to the right, title or interest in the immovable property which has been held to belong to the Gurdwara, or to the person in whose favour the declaration has been made, pass a decree for possession accordingly.

(2) Notwithstanding anything contained in any Act to the contrary, the court-fee payable on the plaint in such suit shall be five rupees.]

26. Entry of rights of gurdwara in revenue records.— When it has been decided, under the provisions of this Act, that a right, title or interest in immovable property belongs to a Notified Sikh Gurdwara or when a right, title or interest in such property has been included in a list published under the provisions of sub-section (3) of section 5 or sub-section (3) of section 10, the Collector of the district in which the property is situated shall, on application being made to him on his behalf and after making such enquiry as he may deem proper as to the fact of such decision or inclusion, cause an entry to be made in the record-of-rights, if any, of the estate in which the property is situated recording the gurdwara as the owner of the right, title or interest in accordance with the provisions of the Punjab Land Revenue Act, 1887¹.

27. Treatment of property dedicated to a Notified Sikh Gurdwara but under management of trustees.— (1) When on or before the commencement of this Act any property has been dedicated or gifted to a Notified Sikh Gurdwara and a trust has been created in writing for the management of such property and for the distribution of the income accruing therefrom partly to the gurdwara and partly to another institution or to another person or to both, any trustee appointed for the propose of such trust, or any person having interest in such gurdwara or any person having interest in such institution, or any beneficiary under the terms of such trust may within ninety days from the date of the publication of a notification declaring such gurdwara to be a Sikh Gurdwara, present a petition to a tribunal claiming that the trustees appointed under the terms of the trust should continue to manage the property and to distribute the income accruing therefrom according to the terms of the trust and in addition may claim that the tribunal should determine what portion of the income should be allocated to any beneficiary.

(2) If the tribunal finds that the major portion of the income accruing from the property has not been allocated under the terms of the trust to such gurdwara then, notwithstanding anything contained in this Act, the tribunal shall order that such trustees shall continue to manage the property and distribute the income accruing therefrom according to the terms of the trust, and if the tribunal finds that the major portion of the income has been allocated under the terms of the trust to the gurdwara the tribunal shall order that the committee of such gurdwara shall manage the property and distribute the income accruing therefrom according to the terms of the trust.

(3) If it is not clear from the terms of the trust what portion of the income has been allocated to any beneficiary, the tribunal may on the application of any party determine what portion of the income shall be allocated to any beneficiary.

(4) If no such petition is presented within the time prescribed in sub-section (1) the committee of such gurdwara shall manage such property and distribute the income accruing therefrom according to the terms of the trust.

28. Suits for possession of undisputed property on behalf of Notified Sikh Gurdwaras.— (1) When a notification has been published under the provisions of sub-section (3) of section 5 or of sub-section (3) of section 10, the committee of the gurdwara concerned may bring a suit on behalf of the gurdwara for the possession of any property, a

¹XVII of 1887.

proprietary title in which has been specified in such notification, provided that the gurdwara concerned is entitled to immediate possession of the property in question, and is not in possession thereof at the date of the publication of such notification.

(2) The suit shall be instituted in the principal court of original jurisdiction in which the property in question is situated within a period of ninety days from the date of the publication of such notification, or from the date of the constitution of the committee whichever is later, and if a suit is not instituted within that period no subsequent suit on behalf of the gurdwara for the possession of the property shall be instituted in any court except on the ground of the dispossession of the gurdwara after the date of the publication of such notification.

(3) Notwithstanding anything contained in any Act to the contrary, the court-fee payable on the plaint in such suit shall be five rupees.

29. Exclusion of jurisdiction of the courts.— Notwithstanding anything contained in any other law or enactment for the time being in force no suit shall be instituted and no court shall entertain or continue any suit or proceeding in so far as such suit or proceeding involves—

- (1) any claim to, or prayer for the restoration of any person to, an office in a Notified Sikh Gurdwara or any prayer for the restoration or establishment of any system of management, of a Notified Sikh Gurdwara other than a system of management established under the provisions of Part III;
- (2) any claim to, or prayer for the restoration of any person to an office in or any prayer for the restoration or establishment of any system of management of, any gurdwara in respect of which a notification has been published in accordance with the provisions of sub-section (3) of section 7 unless and until it has been decided under the provisions of section 16 that such gurdwara should not be declared to be a Sikh Gurdwara.

30. Decision by courts on certain claims in certain circumstances.— At any time after the commencement of this Act, in any suit or proceeding instituted in any civil or revenue court—

- (i) if any claim is made that any right, title or interest in any property belong to a Notified Sikh Gurdwara and the court finds that such claim might have been made in a list forwarded to the ¹[Provincial Government] under the provisions of sub-section (1) of section 3 or of sub-section (2) of section 7 and that no such claim was duly made within time the court shall decide such claim against the gurdwara on behalf of which the claim is made:

Provided that the court need not so decide, if it is satisfied that the failure to make the claim was owing to the fact that no person who forwarded or joined in forwarding a list had knowledge of the existence of the right, title or interest that might have been so claimed and that no such person could by the exercise of reasonable diligence, have come to know of the existence of such right, title or interest;

- (ii) if any right is claimed for any person in connection with a Notified Sikh Gurdwara and the court finds that the right might have been made the subject of a petition presented to the ²[Provincial Government] under the provisions of section 5, 6, 10, or 11 or presented to a tribunal under the provisions of section 19, 20, 21, or 27

¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²*Ibid.*

and that no such claim was duly made within time, the court shall decide the claim against the person claiming the right:

Provided that in the case of a claim that might have been made under the provisions of section 5 or section 10, the court need not so decide if it is satisfied that the failure to make the claim was owing to the fact that the person who might have made the claim either had no knowledge of the existence of the right, title or interest that he might have so claimed or had no knowledge of the fact that the right, title or interest had been included in a list published under the provisions of sub-section (2) of section 3 or of sub-section (3) of section 7 and could not by the exercise of reasonable diligence, have come to know of the existence of such right, title or interest, or of the fact that such right, title or interest, was so included:

Provided further that in the case of a claim by a past or present office-holder or any person deriving titles subsequent to the first day of January 1920 from such office-holder, minority or insanity shall not, by itself, be deemed a valid reason for not having such knowledge.

31. Courts not to continue certain proceedings pending decision as to whether a place is or is not a Sikh Gurdwara.— (1) No court shall continue any proceedings in so far as such proceedings involve any claim relating to a gurdwara specified in Schedule I or in regard to which a notification has been published under the provisions of sub-section (2) of section 3, if such claim could have been made in a petition forwarded to the ¹[Provincial Government] under the provisions of section 5 or 6, or presented to a tribunal under the provisions of section 19, 20, 21 or 27, and was not so made, unless and until such gurdwara is deemed to be excluded from specification in Schedule I under the provisions of section 4.

(2) No court shall continue any proceedings in so far as such proceedings involve any claim relating to a gurdwara in regard to which a notification has been published under the provisions of sub-section (3) of section 7, which could have been made in a petition forwarded to the ²[Provincial Government] under the provisions of section 10 or 11 or presented to a tribunal under the provisions of section 19, 20, 21 or 27, and was not so made, unless and until it has been decided under the provisions of section 16 that such gurdwara should not be declared to be a Sikh Gurdwara.

32. Transfer of suits pending in courts.— (1) Where in any suit or proceeding pending at the commencement of this Act or instituted after its commencement, in a civil or revenue court, it has become or becomes necessary to decide any claim in connection with a Notified Sikh Gurdwara which the court finds might be made under the provisions of section 3, 5, 6, 7, 10, 11, 19, 20, 21 or 27, within the time prescribed therein, the court shall frame an issue in respect of such claim and shall forward the record of the suit or proceedings to a tribunal.

(2) On receiving a record forwarded to it under the provisions of sub-section (1) the tribunal shall proceed to hear and determine the issue and record its decision in the form of an order and shall return the record with a copy of its decision to the court and the court shall proceed to determine the suit or proceeding in accordance with such decision subject to the provisions of section 34.

33. Disputes relating to rights of office-holder after a year from commencement of Act.— When any place has been declared by notification under the provisions of this Act to be a Sikh Gurdwara, the right of any office-holder thereof who holds office on the date of the publication of such notification to continue to hold his office shall be decided in accordance with the provisions of Part III.

¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²*Ibid.*

34. Appeal against orders of a tribunal.— (1) Any party aggrieved by a final order passed by a tribunal determining any matter decided by it under the provisions of this Act may, within ninety days of the date of such order, appeal to the High Court.

(2) No appeal or application for revision shall lie against an order of a tribunal except as provided for in sub-section (1).

(3) An appeal preferred under the provisions of this section shall be heard by a Division Court of the High Court.

35. Court-fees.— Notwithstanding anything contained in any Act to the contrary, the court-fee payable on documents of the description specified in the second column of Schedule III shall be the fee specified in each case in the third column of that schedule and shall be paid in such manner as may be prescribed.

36. No court to take cognizance of manner in which the ¹[Provincial Government] or tribunal exercises its power under the Act.— No suit shall lie in any court to question anything purporting to be done by the ²[Provincial Government], or, by a tribunal, in exercise of any powers vested in it by or under this Act.

37. Courts not to pass an order or grant or execute a decree inconsistent with decision of a tribunal.— Except as provided in this Act no court shall pass any order or grant any decree or execute wholly or partly, any order or decree, if the effect of such order, decree or execution would be inconsistent with any decision of a tribunal, or any order passed on appeal therefrom, under the provisions of this Part.

PART II CHAPTER IV

Application of provisions of Part III to gurdwaras found
to be Sikh Gurdwaras by Courts other than a
Tribunal under the provisions of the Act

38. Recourse to ordinary courts in cases where action has not been taken under Part I with a view to application of provisions of Part III to a gurdwara.— (1) Notwithstanding anything contained in this Act or any other Act or enactment in force any two or more persons having interest in any gurdwara in respect of which no notification declaring the gurdwara to be a Sikh Gurdwara has been published under the provisions of this Act, may, after the expiry of one year from the commencement of this Act or of such further period as the ³[Provincial Government] may have fixed under the provisions of sub-section (1) of section 7, and after having obtained the consent of the Deputy Commissioner of the district in which such gurdwara is situated, institute a suit, whether contentious or not, in the principal court of original jurisdiction or in any other court empowered in that behalf by the ⁴[Provincial Government] within the local limits of whose jurisdiction the gurdwara is situated, praying for any of the reliefs specified in section 92 of the Code of Civil Procedure, 1908⁵, and may in such suit pray that the provisions of Part III may be applied to such gurdwara.

¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²*Ibid.*

³Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁴*Ibid.*

⁵V of 1908.

(2) The court in which a suit is instituted under the provisions of sub-section (1) shall decide whether the gurdwara is or is not a gurdwara as described in sub-section (2) of section 16, and if the court decides that it is such a gurdwara and is also of opinion that, having regard to all the circumstances, the gurdwara is one to the management of which the provisions of Part III should be applied, the court shall by public advertisement and in such other manner as it may in each case direct, call upon any person having interest in the gurdwara to appear and show cause why the provisions of Part III should not be so applied, and shall in its order fix a date not less than one month from the date of the order on which any person appearing shall be heard.

(3) Upon the date fixed under the provisions of sub-section (2) or on any subsequent date to which the hearing may be adjourned, the court shall proceed to hear the person, or persons, if any, appearing, and if the court is satisfied that the provisions of Part III can be applied to the management of the gurdwara without prejudice to any existing order or decree relating to the gurdwara and conferring on any person or declaring any person to be entitled to any right, in respect of the administration or management thereof, the court shall pass a decree that the said provisions shall apply to the management of the gurdwara.

(4) Upon such decree being passed and subject to any order that may be passed on appeal against or in revision of the decree the provisions of Part III shall apply to such gurdwara as if it had been declared by notification under the provisions of this Act to be a Sikh Gurdwara.

(5) When under the provisions of sub-section (3) the provisions of Part III have by decree been applied to the management of a gurdwara any hereditary office-holder of such gurdwara who within twelve months after the date of the decree has resigned office or been removed from office otherwise than in accordance with the provisions of section 134 or under the provisions of section 142 or a presumptive successor of such office-holder, may within ninety days from the date of the resignation or removal, as the case may be, of such office-holder, present a petition to the court which passed the decree claiming to be awarded compensation on the ground that he has suffered or will suffer pecuniary loss owing to a change in the management of such gurdwara, and the court may, notwithstanding the fact that such office-holder has voluntarily resigned, pass a decree awarding him compensation as if such office-holder had been unlawfully removed of his office.

(6) The provisions of sections 22, 23, 24 and 25 shall, so far as may be, apply to proceedings under the provisions of sub-section (5) and to proceedings arising therefrom, as if the court was a tribunal.

PART III CHAPTER V Control of Sikh Gurdwaras

39. Suits for relief claimable by application under this Act, barred.— Notwithstanding anything contained in any Act to the contrary, no suit shall be instituted or continued in any court, claiming any relief in respect of the management or administration of a Notified Sikh Gurdwara if such relief might be or might have been claimed in an application made under the provisions of this Part.

40. Board, Committees and Commission to be constituted for the purposes of this Act.— For the purposes of this Act there shall be constituted a Board and for every Notified Sikh Gurdwara a committee of management ¹[or a local committee], and there shall also be constituted from time to time a Judicial Commission, in the manner hereinafter provided.

¹Inserted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 4.

41. Control of Sikh Gurdwaras.— The management of every Notified Sikh Gurdwara shall be administered by the committee ¹[or a local committee], constituted therefor, the Board and the Commission in accordance with the provisions of this Part.

CHAPTER VI The Board

42. Name of Board.— (1) The Board shall be known by such name as may be decided upon at a general meeting of the first Board constituted under the provisions of this Act, provided that not less than three-fifths of the members present at the meeting have voted in favour of the name selected, and that such name has been approved by the ²[Provincial Government].

(2) If the Board fails to select a name in accordance with the provisions of sub-section (1) or the name selected is not approved by the ³[Provincial Government], the Board shall be designated the Central Board.

(3) The Board shall by such name be a body corporate and shall have a perpetual succession and a common seal and shall by such name sue and be sued.

43. Composition and constitution of the Board.— (1) The Board shall consist of—

- (i) one hundred and ⁴[thirty-two] elected members;
- (ii) the head ministers of the Darbar Sahib, Amritsar and the following four Sikh Takhts, namely—
The Sri Akal Takht Sahib, Amritsar, the Sri Takht Kesgarh Sahib, Anandpur, the Sri Takht Patna Sahib, Patna, and the Sri Takht Hazur Sahib, Hyderabad Dekkan;
- (iii) twelve members nominated by the Darbars of the Indian States specified in sub-section (2);
- (iv) ⁵[seventeen] members resident in India, of whom not more than ⁶[four] shall be residents in the Punjab, co-opted by the members of the Board as described in clauses (i), (ii) and (iii).

(2) The ⁷[Provincial Government] shall invite the Darbars of the Indian States specified in the list following to nominate the number of members stated therein against their respective names:—

Patiala	4
Nabha	2
Faridkot	2
Kapurthala	2

¹Inserted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 5.

²Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³*Ibid.*

⁴Substituted for the word "twenty" by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, clause (a) of s. 6.

⁵Substituted for the word "fourteen" by the Act *ibid.*, clause (b) of s. 6.

⁶Substituted for the word "five" by the Act *ibid.*

⁷Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

Jind	1
Kalsia	1

(3) If the Darbar of any Indian State fails to nominate a member in response to an invitation by the ¹[Provincial Government], the Board shall be deemed to be duly constituted notwithstanding such failure.

(4) The ²[Provincial Government] shall, as soon as may be, call a meeting of the members of the Board described in clauses (i), (ii) and (iii) of sub-section (1) for the purpose of co-opting the members described in clause (iv) of that sub-section, and after the members have been co-opted the ³[Provincial Government] shall notify the fact of the Board having been duly constituted; and the date of the publication of the notification shall be deemed to be the date of the constitution of the Board.

44. Constituencies for election of members of Board.— ⁴[(1) The constituencies by which the elected members of the Board shall be returned, shall be as specified in Schedule IV, and except as hereinafter provided, each constituency shall return a single member:

Provided that the Provincial Government may from time to time, and after such consultation with the Board as it considers proper, by notification alter the local limits of any constituency.

(2) The Provincial Government shall, from time to time, and after such consultation with the Board as it considers proper, select twelve constituencies from among the constituencies specified in Schedule IV; and the constituencies so selected shall be plural constituencies each returning two members, of whom one shall be a Mazhabi Sikh, a Ramdasia Sikh or a Kabirpanthia Sikh, and the other shall be a Sikh who is neither a Mazhabi Sikh, a Ramdasia Sikh nor a Kabirpanthia Sikh.]

45. Qualifications of elected members.— (1) A person shall not be eligible for election as a member of the Board if such person—

- (i) is of unsound mind;
- (ii) is an undischarged insolvent;
- (iii) is a patit;
- (iv) is a minister of a Notified Sikh Gurdwara, other than the head minister of the Darbar Sahib, Amritsar, or of one of the four Sikh Takhts specified in clause (ii) of sub-section (1) of section 43;
- (v) is a paid servant of any Notified Sikh Gurdwara, or of the Board other than a member of the executive committee of the Board.
- ⁵[(vi) being a keshadhari Sikh is not a amritdhari;
- (vii) takes alcoholic drinks;
- (viii) cannot read and write Gurmukhi.]

(2) No person shall be eligible for election as a member of the Board if he is not registered on the electoral roll of any constituency specified in Schedule IV.

¹*Ibid.*

²*Ibid.*

³*Ibid.*

⁴Substituted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 7.

⁵Substituted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 8.

(3) Notwithstanding anything contained in sub-section (1) no person shall be prevented from standing as a candidate for election as a member of the Board on the ground that he is a patit, but if a person elected is thereafter found under the provisions of section 84 to be a patit his election shall be void.

46. Qualifications of nominated members.— A person shall not be nominated or co-opted to be a member of the Board if he—

- (i) is less than twenty-one years old;
 - (ii) is not a Sikh;
 - (iii) is of unsound mind;
 - (iv) is an undischarged insolvent;
 - (v) is a patit;
 - (vi) is minister of a Notified Sikh Gurdwara other than the head minister of the Darbar Sahib, Amritsar, or of any of the four Sikh Takhts specified in clause (ii) of sub-section (1) of section 43;
 - (vii) is a paid servant of any Notified Sikh Gurdwara or of the Board, other than a member of the executive committee of the Board.
- ¹[(viii) being a keshadhari Sikh is not a amritdhari;
- (ix) takes alcoholic drinks;
 - (x) cannot read and write Gurmukhi.]

47. Date of Board elections.— Elections of members of the Board under the provisions of this Act shall be held on dates to be fixed by the ²[Provincial Government].

48. Electoral roll.— An electoral roll shall be prepared in such manner as may be prescribed for every constituency, on which shall be entered the names of all persons entitled to be registered as voters in that constituency.

³**49. Qualifications of electors.**— Every person shall be entitled to have his name registered on the electoral roll of a constituency constituted for the election of a member or members of the Board who is a resident in that constituency and either—

- (i) is on the electoral roll for the time being in force of persons entitled to vote for the election of a member to represent a Sikh urban or rural constituency of the ⁴[Provincial Assembly], or
- (ii) is a Sikh more than twenty-one years of age, who has had his name registered as a voter in such manner as may be prescribed:

Provided that no person shall be registered as an elector who—

- (a) trims or shaves his beard or keshas except in case of sehjdhari Sikhs;
- (b) smokes;

¹Added by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 9.

²Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, s. 3 and Schedule.

³Substituted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 10.

⁴Substituted for the words "Provincial Legislative Assembly of the Punjab" by the West Pakistan Laws (Adaptation) Order, 1964, vide Notification No. Integ.7.13/62, published in the Gazette of West Pakistan (Extraordinary), dated June 3, 1964, pp. 1805-1849, s. 2 read with Part-II of the Schedule.

(c) takes alcoholic drinks.]

50. Right to vote.— ¹[(1)] Every person registered on the electoral roll for the time being in force for any constituency for the election of a member or members of the Board shall be entitled while so registered to vote at an election of a member for that constituency, provided that no person shall be entitled to vote at an election in more than one constituency.

²[(2)] In any plural constituency as provided by section 44, the right of voting shall be exercisable in the following manner that is to say, a vote may be cast for each of the two candidates of whom one shall be a Mazhabi Sikh, a Ramdasia Sikh or a Kabirpanthia Sikh and the other shall be a Sikh who is not either a Mazhabi Sikh or a Ramdasia Sikh or a Kabirpanthia Sikh.]

51. Term of membership.— The members of the Board shall hold office for ³[five] years from the date of its constitution or until the constitution of a new Board, whichever is later.

⁴[**52. Effect of subsequent disability to serve as member of Board.**— (1) If any person having been elected or nominated ⁵[or co-opted] a member of the Board subsequently becomes subject to any of the disabilities stated in section 45 or section 46, as the case may be, he shall cease to be a member thereof.

(2) If any person having been elected or nominated ⁶[or co-opted] a member of the Board absents himself from three consecutive general meetings of the Board, his name may be removed from membership by the Board, provided that, if he applies to the Board within one month of the removal of his name to be restored to membership the Board may, at the meeting next following the date of the receipt of such application, restore him to office, provided further that no member shall be restored more than three times.]

53. Vacancy in Board, how to be filled.— When a vacancy occurs in the Board owing to the death or resignation of a member or for any other reasons, a new member shall be elected, nominated or co-opted, as the case may be, in the manner in which the member whose seat is to be filled was elected or nominated or co-opted.

54. First meeting of the Board.— The first general meeting of the Board shall be held at a time not later than one month after the ⁷[Provincial Government] has notified that it has been constituted, and notice thereof shall be given by notification by the ⁸[Provincial Government].

⁹[Provided that the Provincial Government may, in special circumstances, direct such meeting to be held at a later date.]

¹Renumbered by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 11.

²Added by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 11.

³Substituted for the word "three" by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 12.

⁴Substituted by the Sikh Gurdwaras (Amendment) Act, 1930 (III of 1930), vide Notification No. 116, dated 8th October 1930, published in the Punjab Gazette (Extraordinary), dated October 10, 1930, pp. 107-108, s. 5.

⁵Added by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, clause (i) of s. 13.

⁶*Ibid.*, clause (ii) of s. 13.

⁷Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁸*Ibid.*

⁹Added by the Sikh Gurdwaras (Amendment) Act, 1949 (IX of 1949), vide Notification No. 567-Leg., dated 29th April, 1949, published in the West Punjab Gazette (Extraordinary), dated April 29, 1949, pp. 87-88, s. 2.

55. Annual general meeting.— An annual general meeting of the Board shall be held in every year.

56. Notice of meeting.— Meetings of the Board other than the first meeting shall be called by twenty days' notice in writing served on every member of the Board in such manner as may be prescribed by bye-laws made by the Board.

57. Power of members to call meeting.— Any ten or more members may by application in writing made to the President demand that a general meeting of the Board be held, and if notwithstanding such demand, notice of a meeting is not given within fifteen days of the date on which the application was received by the President, the applicants may themselves call a meeting to be held at the office of the Board by ten days' notice served in the manner described in section 56.

58. Office of Board.— The Board shall have an office in Amritsar for the transaction of business to which all communications and notices to the Board may be addressed.

59. Quorum of Board in general meeting.— The powers vested by this Act in the Board in general meeting shall not be exercised except by the Board at a meeting at which thirty-one or more members are present.

60. Chairman at meetings of the Board.— The President shall be the chairman at the meetings of the Board and of the executive committee; if the President is absent the Vice-President shall be Chairman, and if neither the President nor Vice-President is present the members present shall elect one of themselves to be chairman for the purposes of the meetings.

61. Decision of questions before Board.— Except as otherwise provided by this Act or prescribed all questions which come before the Board or its executive committee shall be decided by a majority of the votes of the members present, and in the case of an equality of votes the chairman shall have a second or casting vote.

62. Office-bearers and executive committee of Board.— The Board shall at its first general meeting elect by a ballot one of its members to be President, ¹[two others to be Vice-Presidents (one Senior and one Junior) and another to be General Secretary of the Board], to be known as office-bearers of the Board, and shall also at the same meeting in like manner elect not less than five and not more than eleven of its members, as the Board may deem fit, to be members of the executive committee of the Board, and the office-bearers and members so elected shall be the executive committee of the Board.

63. Annual election of executive committee.— (1) Subsequent to the constitution of an executive committee under the provisions of section 62 and executive committee similar to the one described in that section shall be elected by ballot at each annual general meeting of the Board; ²[if the Board so desires]; the ³[office bearers] and other members of the executive committee elected at the first meeting of the Board shall hold office until a new executive committee has been elected at the first annual general meeting of the Board, and the members elected at an annual general meeting shall hold office until a new executive committee has been duly elected at the next following annual general meeting.

¹Substituted for the words "and another to be Vice-President of the Board" by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 14.

²Inserted by the Act *ibid.*, clause (a) of s. 15.

³Substituted for the words "office-holder" by the Act *ibid.*, clause (b) of s. 15.

(2) Nothing contained in sub-section (1) shall prevent the re-election of any outgoing member of an executive committee.

64. Powers of executive committee of Board.— The executive committee of the Board shall exercise on behalf of the Board all powers conferred on the Board by the provisions of this Act which are not expressly reserved to be exercised by the Board in general meeting.

65. Vacancy in executive committee, how to be filled.— If a vacancy occurs in the executive committee, the remaining members of the executive committee may, if the vacancy is that of an office-bearer, appoint one of themselves, or if the vacancy is that of any member other than an office-bearer, nominate any member of the Board temporarily to fill the vacancy until the next following general meeting of the Board, and the Board shall at such meeting elect a member of the Board to fill the vacancy.

66. Member of a committee of management not to be member of executive committee of Board.— A member of a committee of management shall not be eligible for election as a member of the executive committee, and if any member of the executive committee at any time becomes a member of a committee of management he shall forthwith cease to be a member of the executive committee.

67. Resignation of member of executive committee.— A member of the executive committee ¹[or of the Board] may resign his office by giving notice to the President, and an office-bearer may resign his office by giving notice to the executive committee, and such resignation shall have effect from the date on which the resignation was accepted by the President or executive committee as the case may be.

68. Remuneration of members of executive committee.— Any member of the executive committee may receive out of the funds of the Board such salary or other remuneration as may from time to time be fixed by the Board in general meeting.

69. Servants of the Board; their appointment and punishment.— The executive committee of the Board may appoint such servants as it may deem to be necessary for the due performance by itself of its duties, and may from time to time determine the number, designations, grades and scales of salary, or other remuneration of such servants, and may at any time fine, reduce, suspend, or remove any servant.

CHAPTER VII The Judicial Commission

70. The Judicial Commission.— (1) The Judicial Commission shall consist of three members who shall be Sikhs, appointed from time to time as may be necessary by the ²[Provincial Government].

- (2) No person shall be appointed to be a member of the Commission unless he—
- (i) is, or, at the time of his retirement or resignation from ³⁴[Service of the State]], was a District Judge or a Sub-ordinate Judge of the first class or of not less

¹Added by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 16.

²Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³Substituted for the words "Government service" by the Order *ibid*.

⁴Substituted for the words "the service of the Crown" by the West Pakistan Laws (Adaptation) Order, 1964, vide Notification No. Integ.7.13/62, published in the Gazette of West Pakistan (Extraordinary), dated June 3, 1964, pp. 1805-1849, s. 2 read with Part-II of the Schedule.

than ten years' standing, or ¹[a munsif of the first class or of not less than ten years' standing or]

- (ii) is a Barrister of not less than ten years' standing, or
- (iii) is a person who has been a pleader of any High Court ²[or any court which is a High Court within the meaning of clause (24) of section 3 of the General Clauses Act, 1897,] for an aggregate period of not less than ten years.

(3) Two of the members of the commission shall be selected by the ³[Provincial Government] out of a list of qualified persons prepared and maintained as described in section 71.

71. Appointment of members of the Commission.— (1) For the purpose of the appointment of members of the Commission the Board shall as soon as may be after its constitution submit a list of the names of seven persons nominated by the Board, and the ⁴[Provincial Government] shall after being satisfied that the persons are qualified as required by section 70 record the list: provided that if the Board fails to submit a list within ninety days from the constitution of the Board the ⁵[Provincial Government] may itself complete a list of qualified persons.

(2) A person whose name is on the list described in sub-section (1) shall be entitled to have his name retained thereon for two years after his nomination has been recorded, provided that the ⁶[Provincial Government] may at any time remove his name, if it is satisfied upon a report made by the Board and any enquiries it may see fit to make, that he is incapable of acting as a member of the Commission.

(3) If any person whose name is on the list dies, or applies to the Board to have his name removed therefrom, the Board shall inform the ⁷[Provincial Government] and his name shall be removed from the list.

(4) The ⁸[Provincial Government] shall on request being made to it for this purpose by the Board remove from the list the name of any person whose name has been on the list for more than three years, provided that the name of any person shall not be so removed while such person is a member of the Commission.

(5) When a name has been removed from the list the Board shall nominate a qualified person for the purpose of filling the vacancy, and the ⁹[Provincial Government] shall after being satisfied that such person is qualified, place his name upon the list.

(6) If the Board fails to nominate a person to fill a vacancy as required by sub-section (5) the ¹⁰[Provincial Government] may after giving one month's notice of its intention to the Board place the name of any qualified person on the list to fill the vacancy.

¹Added by the Sikh Gurdwaras (Amendment) Act, 1930 (III of 1930), vide Notification No. 116, dated 8th October 1930, published in the Punjab Gazette (Extraordinary), dated October 10, 1930, pp. 107-108, s. 6.

²Inserted by the Sikh Gurdwaras (Second Amendment) Act, 1926 (XIII of 1926), vide Notification No. 86, dated 30th November, 1926, published in the Punjab Gazette, Part I, dated December 3, 1926, p. 1183, s. 2.

³Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁴*Ibid.*

⁵*Ibid.*

⁶*Ibid.*

⁷*Ibid.*

⁸*Ibid.*

⁹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹⁰*Ibid.*

72. Member of the Board or of a committee to resign if appointed a member of Commission.— If any person who is a member of the Board or of a committee or of both is appointed to be a member of the Commission and accepts the appointment he shall forthwith cease to be a member of the Board or committee or of both, as the case may be.

73. Remuneration of members of the Commission.— The members of the Commission, while they continue as such, shall receive such remuneration ¹[or daily allowance and travelling expenses] as may be fixed from time to time by the ²[Provincial Government] ³[with consultation of the Board] and shall be deemed to be public servants within the meaning of section 21 of the [Indian] ⁴Penal Code ⁵.

74. Officers and servants of the Commission.— The ⁶[Provincial Government] may from time to time appoint such officers and servants as it may deem to be necessary for the due performance of its duties by the Commission, and the officers and servants so appointed shall, while they continue as such, be deemed to be public servants within the meaning of section 21 of the [Indian] ⁷Penal Code.

75. Expenses to be shared by Government and Board.— (1) ⁸[The net] expenses arising from the appointment of the Commission including the remuneration of its members, officers and servants shall be defrayed by the ⁹[Provincial Government] and the Board, the ¹⁰[Provincial Government], paying one-third of the whole, provided that the remuneration of the members, officers and servants shall be paid wholly in the first instance by the ¹¹[Provincial Government] and the portion thereof payable by the Board shall be recovered from the Board after the close of each financial year.

(2) Any sum due to the ¹²[Provincial Government] under the provisions of subsection (1) shall, if not recovered within three months after a demand has been made, be recoverable as if it were an arrear of land revenue.

76. Jurisdiction and procedure of Commission.— (1) The Commission shall for the purpose of deciding any matter which it is empowered to decide under the provisions of this Act have the same powers as are vested in a court by the Code of Civil Procedure, 1908 ¹³, and shall have jurisdiction unlimited as regards value throughout the Punjab, and shall have no jurisdiction over any proceedings other than is expressly vested in it by this Act.

¹Inserted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, clause (i) of s. 17.

²Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³Inserted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, clause (ii) of s. 17.

⁴Now it is "Pakistan Penal Code" as the word "Indian" substituted from the title of the Indian Penal Code, 1860, by the Adaptation of the Central Acts and Ordinances Order, 1949, vide Notification No. G.G.O. 4, dated 25th March, 1949, published in the Gazette of Pakistan (Extraordinary), dated March 28, 1949, pp. 223-283, subsection (1) of s. 3.

⁵XLV of 1860.

⁶Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁷Substituted for the word "Indian" from the title of the Indian Penal Code, 1860, by the Adaptation of the Central Acts and Ordinances Order, 1949, vide Notification No. G.G.O. 4, dated 25th March, 1949, published in the Gazette of Pakistan (Extraordinary), dated March 28, 1949, pp. 223-283, subsection (1) of s. 3.

⁸Substituted for the word "All" by the Sikh Gurdwaras (Amendment) Act, 1941 (I of 1941), published in the Government Gazette (Extraordinary), Punjab, dated February 4, 1941, p. 17, s. 2.

⁹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹⁰*Ibid.*

¹¹*Ibid.*

¹²*Ibid.*

¹³V of 1908.

(2) A decree or order of the Commission shall be executed or otherwise given effect to by the District Court of the district in which the gurdwara in connection with which the decree or order was passed is situated, or by the District Court to which the Commission directs that any decree or order shall be sent for this purpose, as if the decree or order had been a decree or order passed by such court.

(3) The proceedings of the Commission shall, so far as may be and subject to the provisions of this Act, be conducted in accordance with the provisions of the Code of Civil Procedure, 1908¹, and, save as otherwise, provided by this Act, all orders of the Commission shall be final.

77. Court and office of Commission.— The Commission shall have its court and office at such place or places as the ²[Provincial Government] may from time to time fix.

78. Vacancy in Commission.— If a vacancy occurs in the Commission it shall be filled by the appointment by the ³[Provincial Government] of some other qualified person in the same manner as that in which the person whose seat is to be filled was appointed.

79. Removal of member of Commission.— The ⁴[Provincial Government] may remove any member of the Commission—

- (i) if he refuses to act or becomes in the opinion of the ⁵[Provincial Government] incapable of acting or unfit to act as a member, or
- (ii) if he has absented himself from more than three consecutive meetings of the Commission, or
- (iii) if it is satisfied after such enquiry as it may deem necessary that he has flagrantly abused his position as a member, ⁶[*]
- (iv) ⁷[* * * * *]

80. Election of president of Commission.— (1) The members of the Commission shall elect one of themselves to be president of the Commission.

(2) If the members of the Commission are unable within ten days of the constitution of the Commission to elect a president by a majority of votes, a president may be appointed by the ⁸[Provincial Government].

(3) No proceedings shall be taken by the Commission unless at least two members are present and sitting together: provided that notices and summonses may be issued by the president or a member nominated by the president for this purpose, sitting alone.

(4) If the president is not present the two members present shall decide which of them shall preside, and the member decided upon shall perform the duties of president.

¹V of 1908.

²Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³*Ibid.*

⁴*Ibid.*

⁵*Ibid.*

⁶Deleted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 18.

⁷*Ibid.*

⁸Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

81. Settlement of difference of opinion in Commission.— In case of difference of opinion between the members of the Commission the opinion of the majority shall prevail: provided that, if only two members are present of whom one is the president and if they are not in agreement, the opinion of the president shall prevail; and if the president is not present, and the two remaining members are not agreed, the question in dispute shall be kept pending until the next meeting of the Commission at which the president is present, and the opinion of the majority or of the president when only two members are present shall be deemed to be the opinion of the Commission.

82. Costs in proceedings may be made payable out of income of Sikh Gurdwara.— The costs, charges and expenses of, and incidental to, any proceedings of the Commission shall be in the discretion of the Commission, and the Commission may in disposing of any proceedings direct that the whole or any part of such expenses shall be paid by any party to such proceedings or out of the property or income of the notified Sikh Gurdwara to which the proceedings relate.

83. Dissolution of Commission.— The ¹[Provincial Government] may at any time, when there is no proceeding pending before the Commission, dissolve the Commission.

84. Decision as to whether a person is or is not a patit.— If it is necessary to decide for the purposes of the constitution of the Board or a committee, under the provisions of this Act, whether a person has or has not become a patit the question shall on application being made thereto for this purpose be decided by the Commission.

CHAPTER VIII Committees of gurdwaras

85. Constitution of committees of management of certain gurdwaras.— ²[(1) The Board shall be the Committee of Management for the Gurdwaras known as:—

- (i) the Sri Akal Takhat Sahib at Amritsar and Sri Takhat Keshgarh Sahib, Anandpur;
- (ii) The Darbar Sahib Baba Attal Sahib and all other Notified Sikh Gurdwaras other than Sri Akal Takhat Sahib situated within the Municipal boundaries of Amritsar;
- (iii) Sri Darbar Sahib and all other Notified Sikh Gurdwaras within the limits of Municipal area of Tarn Taran;
- (iv) Notified Sikh Gurdwaras at Nankana Sahib;
- (v) All the Notified Sikh Gurdwaras at Anandpur and the Gurdwaras connected therewith other than the Sri Takhat Keshgarh Sahib;
- (vi) The Notified Sikh Gurdwara at Mukatsar;
- (vii) The Notified Sikh Gurdwaras within the limits of Hassan Abdal Small Town in Attock District; and
- (viii) The Notified Sikh Gurdwaras within the limits of Lahore Corporation.

(2) The Board shall in consultation with local committees prepare a scheme for Administration and Management of the Gurdwaras described in subsection (1), their

¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²Substituted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated February 06, 1945, pp. 19-23, s. 19 and it cancelled the Punjab Government Notification No. 426-Leg., dated January 17, 1945, published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10.

property, endowments, funds and income. Thereafter, this scheme may be modified or amended from time to time by a resolution of the Board passed by a majority of two-thirds of the members present in the meeting, after consulting the local committee for the Gurdwara or Gurdwaras concerned, constituted under subsection (3):

Provided that any scheme so prepared shall provide that 10 per cent of the gross income be earmarked by the Committee of Management for the promotion and uplift of Industry by which the Sikh Community shall benefit.

(3)(a) The local Committee for the Gurdwaras Akal Takhat and Keshgarh mentioned in subsection (1) (i) shall be the Board.

(b) The local Committee for the Gurdwaras mentioned in subsection (1) (ii) shall consist of—

- (i) three members elected by the electors of the Municipal area of Amritsar registered under the provisions of section 92;
- (ii) four members elected by electors of the Amritsar District registered under the provisions of section 92 other than the electors so registered of the Municipal area of Amritsar;
- (iii) five members elected by the Board, in general meeting one of whom shall be one of the persons nominated to be member of the Board under the provisions of subsection (2) of section 43;

(c) The local Committee for the Gurdwaras mentioned in subsection (1) (iii) shall consist of—

- (i) one member elected by the electors of Municipal area of Tarn Taran, registered under the provisions of section 92;
- (ii) three members elected by the electors of the Amritsar District registered under the provisions of section 92, other than the electors so registered of Municipal area of Tarn Taran;
- (iii) three members elected by the Board in general meeting;

(d) The local Committee for the Gurdwaras mentioned in subsection (1) (iv) shall consist of—

- (i) one member elected by the electors of the Municipal area of Nankana Sahib registered under the provisions of section 92;
- (ii) two members elected by the electors of the Sheikhpura District registered under the provisions of section 92 other than the electors so registered of Municipal area of Nankana Sahib;
- (iii) two members elected by the electors of the Gujranwala District registered under the provisions of section 92;
- (iv) one member elected by the electors of the Lahore District registered under the provisions of section 92;
- (v) two members elected by the electors of the Lyallpur District registered under the provisions of section 92;
- (vi) five members elected by the Board in general meeting.

(e) The Local Committee for the Gurdwaras mentioned in subsection (1) (v) shall consist of—

- (i) two members elected by the electors of the revenue estates of Anandpur, Tarapur, Lodipur, Basali and Chak registered under the provisions of section 92;

- (ii) two members elected by the electors of the Hoshiarpur District registered under the provisions of section 92, other than the electors specified in clause (i);
 - (iii) one member elected by the electors of the Ambala District registered under the provisions of section 92;
 - (iv) one member elected by the electors of the Jullundur District registered under the provisions of section 92;
 - (v) five members elected by the Board in general meeting two of whom shall be residents of Kapurthala State.
- (f) The Local Committee for the Gurdwaras mentioned in subsection (1)(vi) shall consist of—
- (i) one member elected by the electors of the municipal area of Mukatsar registered under the provisions of section 92;
 - (ii) two members elected by the electors of the Forozepore District registered under the provisions of section 92, other than the electors so registered of the municipal area of Makatsar;
 - (iii) one member elected by the electors of the Ludhiana District registered under the provisions of section 92;
 - (iv) five members elected by the Board in general meeting, one of these being resident of Nabha State and one of Faridkot State.
- (g) The Local Committee for the Gurdwaras mentioned in subsection (1) (vii) shall consist of—
- (i) two members elected by the electors of the Rawalpindi District registered under the provisions of section 92;
 - (ii) one member elected by the electors of the Attock District registered under the provisions of section 92;
 - (iii) one member elected by the electors of the Jhelum District registered under the provisions of section 92;
 - (iv) five members elected by the Board in general meeting two of whom shall be residents of the North-West Frontier Province and one a Sehjdhari Sikh resident of North-West Frontier Province or Rawalpindi Division.
- (h) The Local Committee for the Gurdwaras mentioned in subsection (1) (viii) shall consist of—
- (i) three members elected by the electors of Lahore Corporation registered under the provisions of section 92;
 - (ii) three members elected by the electors of the Lahore District registered under the provisions of section 92 other than the electors so registered of the Lahore Corporation;
 - (iii) two members elected by the Board in general meeting.

¹[(4) Notwithstanding anything contained in subsection (3), the members of the local committee mentioned in sub-clauses (i) and (ii) of clause (b), sub-clause (ii) of clause (c), sub-clauses (ii), (iii) and (v) of clause (d), sub-clauses (i) and (ii) of clause (e), sub-clause (ii) of clause (f), sub-clause (i) of clause (g) and sub-clauses (i) and (ii) of clause (h) thereof shall be elected from single member constituencies as prescribed.]

¹Substituted by the Sikh Gurdwaras (Amendment) Act, 1949 (IX of 1949), vide Notification No. 567-Leg., dated 29th April, 1949, published in the West Punjab Gazette (Extraordinary), dated April 29, 1949, pp. 87-88, clause (i) of s. 3.

(5) The various Local Committees, constituted under subsection (3), shall carry on the day to day business of the respective Gurdwaras within the sanctioned budget under the supervision, directions and control of the Board and subject to the provisions of the Act and the scheme of Administration referred to in subsection (2):

Provided that none of the members elected by the Board in general meeting to the local committees constituted under subsection (3) shall belong to the Districts which have the right to elect members to the said local committees:

Provided further that the existing committees of management of the Gurdwaras under this section shall hereafter act as local committees of the respective Gurdwaras till the ¹[local committees are constituted].

86. Committees of gurdwaras other than those specified in section 85.— For every Notified Sikh Gurdwara other than a gurdwara specified in section 85 a committee shall be constituted after it has been declared to be a Sikh Gurdwara under the provisions of this Act, or after the provisions of Part III have been applied to it under the provisions of section 38: provided that the ²[Provincial Government] may by notification direct that there shall be one committee for any two or more such gurdwaras specified in the notification, and may in like manner cancel or modify such notification: provided further that the ³[Provincial Government] shall not issue, cancel or modify any such notification after the constitution of the first Board, except upon recommendation being made to it in this behalf by the board.

⁴**[86-A. Member of committee not to be member of the executive committee of the Board.**— A member of committee of management constituted under section 86 and a member of local committee constituted under section 85 shall not be eligible for election as a member of the executive committee of the Board and if any member of the executive committee at any time becomes a member of such committee of management or local committee, he shall forthwith cease to be a member of the executive committee.]

87. Constitution of committee not specially provided for.— Every committee other than a ⁵[local] committee for which provision is made in section 85 shall consist of four elected members and one member nominated by the Board, who shall be a resident in the district in which the gurdwara or one of the gurdwaras to be managed by the committee is situated.

88. Constitution of committees; publication of constitution and effect thereof.— (1) The ⁶[local committees or] committees described in sections 85 and 86 shall be constituted as soon as may be after the constitution of the Board: provided that no ⁷[local committee or] committee shall be constituted for any gurdwara under the provisions of this Act unless and until it has been declared to be a Sikh Gurdwara under the provisions of this Act, or the provisions of Part III have been applied to it under the provisions of section 38.

¹Substituted for the words "next Gurdwara General Election takes place" by the Sikh Gurdwaras (Amendment) Act, 1949 (IX of 1949), vide Notification No. 567-Leg., dated April 29, 1949, published in the West Punjab Gazette (Extraordinary), dated April 29, 1949, pp. 87-88 (w.e.f 17.01.1945), clause (ii) of s. 3.

²Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³*Ibid.*

⁴Inserted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 20.

⁵Inserted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 21.

⁶*Ibid.*, clause (a) of s. 22.

⁷*Ibid.*

(2) When all the members of any ¹[local] committee described in section 85 have been elected ²[* * * * *], according to the provisions of that section, the ³[Provincial Government] shall notify the fact that the ⁴[local] committee has been duly constituted, and the date of the publication of the notification shall be deemed to be the date of the constitution of the ⁵[local] committee.

(3) When all the members of any committee described in section 87 have been elected or nominated, as the case may be, according to the provisions of that section, the Commissioner of the Division in which the gurdwara or gurdwaras is or are situated shall notify the fact that the committee has been duly constituted, and the date of the publication of the notification shall be deemed to be the date of the constitution of the committee.

89. Election of members.— (1) The elected members of a committee ⁶[or a local committee] constituted for a gurdwara specified in the Schedule I shall be elected by the constituencies specified in the Schedule against the gurdwaras:

Provided that the ⁷[Provincial Government] may, from time to time, and after such consultation with the Board as it considers proper, by notification alter the local limits of any constituency.

(2) The elected members of a committee constituted for a gurdwara other than a gurdwara specified in Schedule I or in section 85 shall be elected by a constituency formed, subject to the approval of the ⁸[Provincial Government] by the Board in general meeting, provided that for the election of such a committee before the constitution of the first Board under the provisions of this Act the ⁹[Provincial Government] shall, if necessary, form the constituency.

(3) The Board may in general meeting, and subject to the approval of the ¹⁰[Provincial Government], from time to time vary any constituency formed under the provisions of sub-section (2).

90. Qualification for election to a committee.— (1) A person shall not be eligible for election as member of a committee ¹¹[or of a local committee] if such person—

- (i) is not registered on the roll of any constituency formed for the purposes of the Act, or
- (ii) is of unsound mind, or
- (iii) is an undischarged insolvent, or

¹*Ibid.*

²Omitted the words "or co-opted, as the case may be" by the Act *ibid.*, clause (b) of s. 22.

³Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁴Inserted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, clause (b) of s. 22.

⁵*Ibid.*

⁶*Ibid.*, s. 23.

⁷Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁸*Ibid.*

⁹*Ibid.*

¹⁰*Ibid.*

¹¹Inserted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, clause (a) of s. 24.

- (iv) is a minister of a Notified Sikh Gurdwara other than the head minister of the Darbar Sahib, Amritsar, or any of the four Sikh Takhts specified in clause (ii) of sub-section (1) of section 43, or
- (v) is a paid servant of any Notified Sikh Gurdwara or of the Board, or
- (vi) is a patit, ¹[or]
- ²[(vii) is not a Sikh, or
- (viii) being a Keshadhari Sikh is not a amritdhari, or
- (ix) takes alcoholic drinks, or
- (x) cannot read and write Gurmukhi.]

(2) Notwithstanding anything contained in sub-section (1), no person shall be prevented from standing as a candidate at any election on the ground that he is a patit, but if he is elected and thereafter found, under the provisions of section 84, to be a patit, his election shall be void.

91. Qualification for nomination to a committee.— A person shall not be nominated ³[or co-opted] to be a member of a committee if he—

- (i) is less than twenty-one years of age, or
- (ii) is of unsound mind, or
- (iii) is an undischarged insolvent, or
- (iv) is a patit ⁴[or not a Sikh], or
- (v) is a minister of a Notified Sikh Gurdwara other than the head minister of the Darbar Sahib, Amritsar, or any of the four Sikh Takhts specified in clause (ii) of sub-section (1) of section 43, or
- (vi) is a paid servant of a Notified Sikh Gurdwara,
- ⁵[(vii) being a Keshadhari Sikh is not a amritdhari, or
- (viii) takes alcoholic drinks, or
- (ix) cannot read and write Gurmukhi.]

⁶**92. Qualification of electors.**— Every person shall be entitled to have his name registered on the electoral roll of a constituency for the election of a member or members of a committee or of a local committee who is a resident in that constituency, and either:—

- (i) is on the electoral roll for the time being in force of persons entitled to vote for the election of a member to represent a Sikh urban or rural constituency of the ⁷[Provincial Assembly], or
- (ii) is a Sikh more than twenty-one years of age and has had his name registered as a voter in such manner as may be prescribed:

Provided that no person shall be registered as an elector who—

- (a) trims or shaves his beard or keshas except in case of Sehjdhari Sikhs;

¹Added by the Act *ibid.*, clause (b) of s. 24.

²*Ibid.*, clause (c) of s. 24.

³Inserted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, clause (a) of s. 25.

⁴*Ibid.*, clause (b) of s. 25.

⁵Added by the Act *ibid.*, clause (c) of s. 25.

⁶Substituted by the Act *ibid.*, s. 26.

⁷Substituted for the words "Provincial Legislative Assembly" by the West Pakistan Laws (Adaptation) Order, 1964, vide Notification No. Integ.7.13/62, published in the Gazette of West Pakistan (Extraordinary), dated June 3, 1964, pp. 1805-1849, s. 2 read with Schedule, Part-II.

- (b) smokes; and
- (c) takes alcoholic drinks.]

93. Right to vote.— Every person registered on the electoral roll of a constituency for the election of a member or members of a committee ¹[or a local committee] shall be entitled while so registered to vote at an election of a member or members for that constituency.

94. Period of continuance of committees.— Every committee shall continue for ²[five] years from the date of its constitution or until a new committee has been constituted, whichever is later.

³**[94.A. Incorporation of committees.**— Every Committee shall be a body corporate by the name of the Committee of Management of the Gurdwara or Gurdwaras under its management and shall have perpetual succession and a common seal and shall sue and be sued in its corporate name.]

⁴**[95. Effect of subsequent disability to serve as a member of a Committee.**— (1) If any person having been elected or nominated a member of a Committee becomes subject to any of the disabilities stated in section 90 or 91, as the case may be, he shall cease to be a member thereof.

(2) If any person having been elected or nominated a member of the Committee absents himself from three consecutive meetings of the Committee, his name may be removed from membership by the Committee, provided that, if he applies to the Committee within one month of the removal of his name to be restored to membership, the Committee may, at the meeting next following the date of the receipt of such application, restore him to office, provided further that no member shall be so restored more than three times to the same Committee.]

96. Vacancies in committees other than those specified in section 85.— ⁵[(1)] On the occurrence of a vacancy in a ⁶[local] committee other than one of the committees specified in section 85 a new member shall be elected or nominated, as the case may be, in the manner in which his predecessor was elected or nominated, and if no member is duly elected to replace an elected member, the Board may appoint any qualified person to fill the vacancy.

⁷[(2)] If in three consecutive elections no member is elected for the committee of management of a Notified Sikh Gurdwara the Board may constitute the Committee for such a gurdwara; provided the persons appointed upon such a committee shall be the residents of the district in which the said gurdwara or gurdwaras are situated.]

97. Vacancies in committees specified in section 85.— If a vacancy occurs in the ⁸[local] committee of a gurdwara specified in section 85 a new member shall be elected or co-opted to fill the vacancy in the manner in which his predecessor was elected or co-opted,

¹Inserted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 27.

²Substituted for the word "three" by the Act *ibid.*, s. 28.

³Inserted by the Sikh Gurdwaras (Amendment) Act, 1930 (III of 1930), vide Notification No. 116, dated 8th October 1930, published in the Punjab Gazette (Extraordinary), dated October 10, 1930, pp. 107-108, s. 7.

⁴Substituted by the Act *ibid.*, s. 8.

⁵Renumbered by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 30.

⁶Inserted by the Act *ibid.*, s. 29.

⁷Added by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 30.

⁸Inserted by the Act *ibid.*, s. 31.

provided that if the predecessor was elected by the Board in general meeting the executive committee may temporarily fill the vacancy until the next general meeting of the Board when the Board shall elect a member permanently to fill the vacancy.

98. Committees to meet at least three times a year.—¹[(1)] Every committee shall meet at least three times in each year.

²[(2)] If no meeting has been held for a period of four months, any two members of the Committee may, by giving reasonable notice to the other members residing in India, convene a meeting of the committee.]

99. Notice of meetings.— A meeting of a committee shall be called by the president by seven day's notice in writing, provided that if the office of president is vacant, the vice-president shall, and if the office of vice-president is also vacant, any two members of a committee may, by giving reasonable notice to the other members, convene a meeting for the election of a president.

100. Quorum of committee.— No business shall be conducted or any proceeding held by a committee except at a meeting at which three or more members are present.

101. Presidents and Vice-Presidents of committees.— (1) Every committee shall at its first meeting elect a member to be president and another member to be vice-president, and each of the members so elected shall hold office during the continuance of the committee or until he resigns or ceases to be a member of the committee.

(2) An outgoing president or vice-president shall, if otherwise qualified, be eligible for re-election.

(3) At meetings of the committee the president shall be chairman; if he is absent the vice-president shall be chairman, and if both the president and the vice-president are absent, the members present shall elect one of themselves to be chairman for the purpose of the meeting.

102. Decisions of questions before committees.— All questions which come before a committee shall be decided by a majority of the votes of the members present, and in cases of an equality of votes the chairman shall have a second or casting vote.

103. Minutes to be recorded.— All resolutions and orders of a committee shall be recorded in writing in a minute book and the record shall be signed by the chairman of the meeting.

104. Resignation of president and members of committee.— (1) A member of a committee other than the president may resign his office by giving notice to the president and a president may resign his office by giving notice to the committee.

(2) The resignation shall take effect in the case of a member from the date of its acceptance by the president, and in the case of a president from the date of its acceptance by the committee.

105. Exclusion of Board acting as committee from operation of this chapter.—³[The provisions of sections 95, 98, 99, 100, 101, 102, 103 and 104 shall apply to the local committees constituted under section 85, but nothing contained in this chapter shall, apply to

¹Re-numbered by the Sikh Gurdwaras (Amendment) Act, 1930 (III of 1930), vide Notification No. 116, dated 8th October 1930, published in the Punjab Gazette (Extraordinary), dated October 10, 1930, pp. 107-108, s. 9.

²Added by the Act *ibid*.

³Substituted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 32.

the Board when acting as the committee of management for the gurdwaras specified in section 85 (1).]

CHAPTER IX Finances

106. Object on which the funds of a Gurdwara may be spent.— (1) Subject to the provisions of this Act all properties and income of a Notified Sikh Gurdwara shall be used, in the first place, for the maintenance or improvement of the gurdwara; for the maintenance of religious worship and the performance and conduct of religious and charitable duties, ceremonies and observances connected therewith; for the payment of allowances or salaries of dependents, officers and servants thereof; for the fulfillment of the objects of the endowments thereof; for the maintenance of the langar; for such religious, charitable or educational purposes as the committee may consider necessary in connection therewith or for the discharge of any obligations legally incurred.

(2) When after providing for the purposes specified in sub-section (1) there remains or appears likely to remain any surplus sum or any income not required for any such purposes, the committee may, by resolution passed by not less than two-thirds of its members, propose to allocate a part or the whole of such surplus sum or income to a particular religious, educational or charitable purpose and may, if the Board in writing sanctions such proposal, act in accordance therewith, provided that any proposal so sanctioned to devote to such purpose income accruing during a period of more than three years may at any time not sooner than three years after the proposal was sanctioned be rescinded or varied by a subsequent resolution of the committee passed in like manner.

(3) Notwithstanding anything contained in sub-section (2) when it appears to the Board that after providing for the purposes specified in sub-section (1) there remains or is likely to remain any surplus sum or income not required for any such purposes, and the committee is not willing to devote such surplus sum or income to other purposes, the Board may apply to the Commission for an order allowing the Board to devote the whole or part of such surplus sum or income to a particular and specified religious, educational or other charitable purpose.

(4) When application has been made in accordance with the provisions of sub-section (3) the Commission may, after hearing the objections, if any, of the committee or of any person having interest in the gurdwara concerned, if it is satisfied that the application is reasonable, determine what portion, if any, of such surplus sum or income shall be retained as a reserve fund for the gurdwara concerned and direct the remainder of the surplus sum or income to be devoted to any such religious, educational or charitable purpose as it may deem proper, and the Commission may, from time to time, on the application of the Board or of the committee or of a person having interest in the gurdwara concerned, rescind or vary any order passed under the provisions of this sub-section.

(5) A committee or the Board if it is aggrieved by an order passed under sub-section (4) may, not later than ninety days after the passing of the order, appeal to the High Court and the High Court may confirm the order or pass any such order as the Commission might have passed instead of the order appealed against.

¹[(6) Nothing contained in subsections (2), (3), (4) and (5) shall apply to the Board when acting as a Committee of management under section 85 of this Act. In the case of such a committee when after providing for the purposes specified in subsection (1) there remains or appears likely to remain any surplus sum or any income not required for such purposes, the committee may by a resolution passed by not less than two-thirds of the

¹Added by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 33.

members present in the meeting: provided that the meeting is attended by not less than one-half of the total members constituting the committee, utilize or allocate a part or the whole of such surplus sum or income of any particular gurdwara under its management to a particular religious educational, charitable or industrial purpose:

Provided further that an allocation so made to devote to such purpose income accruing during a period of more than three years may at any time not sooner than three years after the allocation was made be rescinded or varied by a subsequent resolution of the committee passed in the like manner.]

107. Annual contribution to Board.— (1) Every committee shall pay annually to the Board for the purpose of meeting the lawful expenses of the Board a contribution in money out of the income of the gurdwara or gurdwaras under its management.

¹[(2) The proportion which such contribution shall bear to the annual income of a gurdwara shall be fixed for each gurdwara by the Board: provided that it shall not exceed one-tenth of such income.]

²[(3) The Board shall be competent to reduce the amount of contribution due to the Board from any committee or gurdwara in any year for special reasons. Further the Board shall have power to prescribe the limit or annual income of the gurdwara or gurdwaras which may be totally exempted from making the contribution payable to the Board under the provisions of this section.]

108. Formation of General Board Fund.— (1) The Board shall establish and maintain a fund to be called the General Board Fund, and there shall be placed to the credit thereof the following sums, namely—

- (i) all the annual contributions paid to the Board under the provisions of section 107;
- (ii) all the fees for copies of accounts and of entries in registers levied by the Board under the provisions of sub-section (2) of section 114 and sub-section (8) of section 137.

(2) No sums other than those specified in sub-section (1) shall be placed to the credit of the General Board Fund.

³[(3) The General Board Fund shall be applied solely to the payment of expenses lawfully incurred by the Board in the exercise of its powers under the provisions of this Act, towards the discharge of obligations legally incurred and towards the maintenance, protection and support of such historical gurdwaras which in the opinion of the Board cannot be maintained, protected or provided for otherwise, provided that if after paying such expenses and discharging such obligations and affording such protection any surplus sum remains, such surplus sum, up to the amount of twenty-thousand rupees in any year, may be spent by the Board on any religious, charitable, educational or industrial purposes and on such non-political purposes as are connected with the general uplift and welfare of the Panth as the Board may deem fit.]

(4) No part of the General Board Fund, shall be expended upon the administration of any trust fund described in section 111 or section 112, or upon the object of any such trust fund except in so far as such expenditure may be permissible under the provisions of sub-section (3).

¹Substituted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 34.

²Added by the Act *ibid.*, s. 35.

³Substituted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 36.

109. Funds transferred to Board by Shromani Gurdwara Parbandhak Committee.— If any sum is transferred to the Board by the Shromani Gurdwara Parbandhak Committee, then:—

- (i) any portion thereof held on behalf of a Notified Sikh Gurdwara shall be paid, as soon as may be, to the committee of such gurdwara, and any portion held on behalf of any other place of worship shall be paid to such person acting on behalf of the place of worship, as the ¹[Provincial Government] may approve;
- (ii) any portion not required to be paid under the provisions of clause (i) shall, in the first place, be used to discharge such debts of the Shromani Gurdwara Parbandhak Committee as may be legally recoverable;
- (iii) any portion remaining after the debts of the Shromani Gurdwara Parbandhak Committee have been discharged as required by clause (ii) shall be set apart for such religious, charitable or educational purposes as the Board in general meeting may determine, provided that any portion not so set apart within one year from the constitution of the first Board shall be handed over to the committee described in sub-section (2) of section 85 and shall form part of the funds of that committee.

110. Funds held in Trust by the Board for specified purposes.— Every sum made over to the Board under the provisions of this Act by a committee of a Notified Sikh Gurdwara or otherwise received by the Board, for a specified religious, charitable ²[industrial] or educational purpose shall be held by the Board as a trust and shall be devoted to the purpose specified.

111. General Trust Fund.— Every sum other than a sum specified in sections 107, 109, or 110 or sub-section (2) of section 114 or sub-section (8) of section 137, shall be placed to the credit of a fund to be called the General Trust Fund out of which the Board in general meeting may from time to time make allotments for the discharge of any obligations legally incurred in connection therewith or for such religious, charitable ³[industrial] or educational purposes as the Board may consider proper or for grants in-aid for the maintenances or service of Notified Sikh Gurdwaras.

112. Separate funds to be maintained for each trust.— The Board shall establish and maintain a separate fund in respect of each trust held in accordance with the provisions of clause (iii) of section 109 or of section 110, and may discharge out of each such fund any obligations legally incurred in connection therewith.

113. Trust Funds to be deposited in banks.— Every sum received by the Board in connection with any fund shall be placed to the credit of the fund in such bank as the Board in general meeting may direct.

114. Board to maintain accounts of all Trust funds and of General Board Fund.— (1) The Board shall maintain regular accounts showing receipts on account of an expenditure out of the General Board Fund and separate similar accounts for each fund established under the provisions of section 112 and for the General Trust Fund.

(2) Any person having interest in a Notified Sikh Gurdwara shall on application being made to the Board be furnished with a copy, certified to be correct by the president or

¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²Inserted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 37.

³*Ibid.*, s. 38.

other member of the executive committee authorised by the president on this behalf, of the whole or of any specified part of such account.

(3) The Board shall charge for copies of accounts furnished under the provision of sub-section (1) such fees as are charged for copies of records under the control of Deputy Commissioners of districts under the rules for the time being in force in the Punjab.

115. Audit of accounts.— (1) The accounts described in section 114 shall be audited and examined once in every year by such auditor as may from time to time be appointed by the ¹[Provincial Government].

(2) For the purpose of any such audit and examination of accounts the auditor may by a demand in writing require from the Board or any member or servant of the Board the production before him of all books, deeds, vouchers and all other documents and papers which he deems necessary, and may require any person holding or accountable for any such books, deeds, vouchers, documents or papers to appear before him at any such audit and examination, and to answer all questions which may be put to him with respect to the same or to prepare and submit any further statement which such auditor may consider necessary.

116. Auditor's report.— (1) Within thirty days after the audit and examination have been completed the auditor shall submit a report to the Board upon each account audited and examined, and shall forward copies of his reports to the ²[Provincial Government] and to the Commission.

(2) The report of the auditor shall among other matters specify all items of expenditure which in his opinion are illegal, irregular or improper, all cases of failure to recover money or property due to the Board, all instances of loss or wasteful expenditure of money or property due to negligence or misconduct and all instances in which any money or property has been devoted to any purpose not authorised by this Act.

(3) The Board shall cause the report and abstracts of each account to be published in at least one English and one vernacular newspaper printed and published in the Punjab.

117. Board to consider auditor's report.— The Board in general meeting shall consider the reports of the auditor and satisfy itself that no expenditure shown therein has been incurred otherwise than in accordance with the provisions of this Act and shall pass such orders as are in its opinion necessary and proper to rectify any illegal, unauthorized or improper expenditure, and may pass such further orders upon the reports as it may deem proper.

118. Payment of expenses of audit.— (1) The expenses incurred in the audit and examination of the account of any fund maintained by the Board in accordance with the provisions of this Act shall be paid out of that fund.

(2) If payment of the expenses referred to in sub-section (1) is not made within three months from the date of the submission of a report as described in section 116, the ³[Provincial Government] may on application to it being made within six months from such date by the auditor recover the amount due as if it were an arrear of land revenue.

¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²*Ibid.*

³Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

119. Budget of Board.— (1) The executive committee shall lay before the Board at a general meeting to be held each year at such time as may be prescribed an estimate of the income and expenditure for the ensuing financial year of the Board and of each separate fund administered by the Board.

(2) The Board shall in general meeting take into consideration every estimate laid before it by the executive committee, and it shall be in the discretion of the Board to pass or reject such estimate or to modify or alter it and to pass it as so modified or altered.

120. Accounts to be maintained by committees.— (1) The committee ¹[or the local committee] of every Notified Sikh Gurdwara shall maintain a regular account, showing all sums received on behalf of and all disbursements made out of the funds and income of the gurdwara.

(2) Any person having interest in the gurdwara shall, on application to the secretary of the committee ²[or the local committee], be furnished with a copy of the whole or any part of such account.

(3) The committee ³[or the local committee] shall charge for copies furnished under the provisions of sub-section (1) such fees as are charged for copies of records under the control of Deputy Commissioners of districts under the rules for the time being in force in the Punjab.

121. Audit of committee's accounts.— (1) Subject to the provisions of sub-section (5) every account described in section 120 shall be audited and examined once in every year by an auditor appointed by the Board.

(2) The accounts of the ⁴[local] committees described in ⁵[* * *] section 85 shall be audited by an auditor who may act as an auditor under the provisions of section 144 of the Indian Companies Act, 1913.

(3) The Board shall maintain a list of not less than five auditors nominated by the Board with the previous sanction of the ⁶[Provincial Government] for the purpose of the audit of the accounts of committees other than those specified in sub-section (2), and no auditor, whose name is not on the list, shall be appointed to audit such accounts.

(4) If within six months of the constitution of the Board the Board has failed to nominate auditors as required by sub-section (3) the ⁷[Provincial Government] may appoint such number of auditors as are necessary to complete the list.

(5) The committee of any Notified Sikh Gurdwara whose gross annual monetary income does not exceed two thousand rupees may, with the sanction of the Board, cause the account of such gurdwara to be audited less frequently than once in every year or may with like sanction dispense with the audit and examination of such account.

(6) For the purpose of any such audit and examination the auditor may by a demand in writing, require from the committee or any member or servant of the committee the production before him of all books, deeds, vouchers and all other documents and papers

¹Inserted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 39.

²*Ibid.*

³*Ibid.*

⁴Inserted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 40.

⁵Omitted the words and figures "subsection (2) and subsection (4) of" by the Act *ibid.*

⁶Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁷*Ibid.*

which he deems necessary, and may require any person holding or accountable for any such books, deeds, vouchers, documents or papers to appear before him at any such audit and examination and to answer all questions which may be put to him with respect to the same or to prepare and submit any further statement which such auditor may consider necessary.

122. Report of auditor.— (1) Within thirty days after the audit and examination have been completed the auditor shall report to the committee of the gurdwara upon the accounts audited and examined and shall forward a copy of his report to the Board, and, in the case of the accounts of the committees described in sub-section (2) and sub-section (4) of section 85, shall forward a copy to the ¹[Provincial Government] also.

(2) The report of the auditor shall among other matters specify all items of expenditure which in his opinion are illegal, irregular or improper, all cases of failure to recover money or property due to the gurdwara, all instances of loss or wasteful expenditure of money or property due to negligence or misconduct and all instances in which any money or property has been devoted to any purpose not authorised by this Act.

²[(3)] The auditor's report upon the account of a gurdwara shall be open to inspection by any Sikh provided that reasonable notice of intention to inspect is given by such Sikh to the committee.

³[(4)] The expenses incurred in the audit and examination of the accounts of a gurdwara shall be paid out of the income of the gurdwara.

123. Budget of committees.— (1) Every committee shall submit each year to the Board at such time as may be prescribed an estimate of the income and expenditure for the ensuing financial year of the gurdwara or gurdwaras under its management.

(2) The Board shall scrutinize every estimate submitted in accordance with the provisions of sub-section (1), and if it finds that the estimate provides for expenditure not authorised by this Act, the Board shall direct the committee to modify or alter the estimate within a reasonable time in such manner as the Board may deem necessary, and if the committee does not within the time stated comply with the direction, the Board shall apply to the Commission to pass an order calling upon the committee to make such modification or alteration, and the Commission may, after making such enquiry as may in its opinion be necessary, pass any order that it considers just and proper.

(3) If the Board finds that an estimate submitted to it is not in accordance with a scheme of administration settled under the provisions of this Act for the gurdwara to which the estimate relates, the Board may direct the committee to modify or alter the estimate within a reasonable time in such manner as the Board may deem necessary, and if the committee does not within the time stated comply with the direction, the Board may apply to the Commission to pass an order calling upon the committee to make such modification or alteration and the Commission may, after making such enquiry as may in its opinion be necessary, pass any order that it considers just and proper.

(4) Nothing in this section shall apply to the committee constituted

¹*Ibid.*

²Renumbered by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, s. 2.

³*Ibid.*

under the provisions ¹[* *] of section 85.

124. Recovery of contributions.— (1) The contribution payable under the provisions of section 107 shall be paid by the committee of a gurdwara after such notice and in such manner as may be prescribed.

(2) If a committee fails after due notice to pay any sum payable by it under the provisions of sub-section (1) the Commission shall on application being made to it by the Board in this behalf call upon the committee to show cause why it should not be ordered to pay such sum, and may after hearing such member of the committee as may be deputed by the committee for this purpose, pass an order directing the committee to pay the sum found payable either in a lump sum or by instalments, as it deems fit.

CHAPTER X

Powers and duties of the board

125. Powers and duties of the Board generally.— It shall be the duty of the Board to ensure that every committee deals with the property and income of the gurdwara or gurdwaras managed by it in accordance with the provisions of this Act, and for the fulfilment of this duty and subject to the provisions of, and in addition to the powers conferred upon the Board by, this Act, the ²[control, direction and] general superintendence over all committees appointed under the provisions of this Act shall vest in the Board.

126. Restriction of powers of the Board.— The Board shall not in any manner interfere with or have any control over or connection with any place of public worship in the Punjab otherwise than as provided in this Act.

127. Board may hold and administer Trusts.— It shall be competent for the Board to hold and administer trust funds for purposes of a religious, charitable, ³[educational or industrial nature], whether such funds are derived from allotments duly made by a committee out of the surplus funds or income of a gurdwara under its management or from donations, or contributions or endowments made direct to the Board for such purposes.

128. Control by Board over Executive Committees.— The Board in general meeting may at any time call upon its executive committee to report upon any matter within the jurisdiction of the Board and may require the executive committee to take any such action as lies under the provisions of this Act within the powers of the Board.

129. What matters may be discussed by Board in general meeting.— The Board in any meeting may consider and discuss any matter with which it has power under this Act to deal and any matter directly connected with the Sikh religion, but shall not consider or discuss, or pass any resolution or order upon, any other matter.

130. Settling of schemes of administration.— (1) When at any time the committee or the Board is of opinion that for the proper administration of the property, endowments, funds and income of a Notified Sikh Gurdwara a scheme should be settled, the Board and the committee shall consult together and if they agree upon a scheme the scheme shall be described in writing and the committee shall give effect thereto.

¹Omitted the words, brackets and figure "of subsection (1)" by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 41.

²Inserted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 42.

³Substituted for the words "or educational nature" by the Act *ibid.*, s. 43.

(2) If at such consultation the committee and the Board do not agree upon a scheme, the Committee or the Board may apply to the Commission, and the Commission, after hearing such members of the committee and of the Board respectively, as may be deputed for this purpose by the committee and the Board respectively, and any such other persons as it may consider proper to hear, may itself settle such scheme as it considers just and proper and pass an order giving effect thereto.

(3) When at any time the committee and the Board, after consultation together, are of opinion that a scheme settled under the provisions of sub-section (1) or sub-section (2) should, in the interests of the proper administration of the property, endowments, funds and income of the gurdwara, be set aside or modified and the committee and the Board are in agreement in respect of the matter, the decision of the Board and the committee shall be recorded and effect thereto given by the committee.

(4) If the committee or the Board is of opinion that in the interests of the proper administration of the property endowments, funds or income of a Notified Sikh Gurdwara a scheme settled under the provisions of sub-section (1) or sub-section (2) should be set aside or modified, and the Board and the committee are not in agreement upon the matter, the committee or Board may apply to the Commission to have the scheme set aside or modified as desired, and the Commission after hearing such members of the committee and of the Board respectively as may be deputed for this purpose by the committee and the Board respectively and any such other persons as it may consider proper to hear, may itself set aside or settle such scheme as it considers just and proper and pass an order giving effect thereto.

131. Exclusion of Board acting as committee from operation of section 130.— Nothing contained in section 130 shall apply to the committee constituted under the provisions¹[* *] of section 85.

132. Power of Board to make bye-laws.— (1) The Board may in general meeting make bye-laws, not inconsistent with this Act, regulating its procedure, and the fees to be levied under the provisions of sub-section (8) of section 137, provided that the Board shall not, without the previous sanction of the²[Provincial Government], make any bye-law—

- (a) prescribing the form in which the budgets of the Board and of committees shall be presented;
- (b) providing for the custody and investment of the funds of the Board and prescribing the procedure by which sanction of the Board may be accorded to the deposits of surplus funds in specified banks;
- (c) prescribing the qualifications of candidates for membership of the Board and committees;

and provided further that no bye-law falling within the purview of clause (c) shall impose any disqualification upon a Sikh only because he is a Sahjdhari Sikh.

(2) All bye-laws requiring the previous sanction of the³[Provincial Government] under the provisions of sub-section (1) shall when made be published in the⁴[Official Gazette].

¹Deleted the words, brackets and figure “of subsection (1)” by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 44.

²Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³*Ibid.*

⁴Substituted for the word “Gazette” by the Order *ibid.*

CHAPTER XI

Powers and duties of committees

133. General powers of committees.— Subject to the provisions of this Act, a committee shall have full powers of control over the office-holders and dependents of, and all properties and income of whatever description belonging to, the gurdwara or gurdwaras under its management and of enforcing the proper observance of all ceremonies and religious observances in connection with such gurdwara or gurdwaras and of taking all such measures as may be necessary to ensure the proper management of the gurdwara or gurdwaras and the efficient administration of the property, income and endowments thereof.

134. Powers of committee to dismiss office-holders.— The committee may suspend or dismiss any office-holder, provided that it shall not dismiss a hereditary office-holder or a minister unless it finds that such office-holder or minister—

- (a) makes persistent default in the submission of budgets, accounts, reports or returns which it is his duty to submit, or
- (b) wilfully disobeys lawful orders issued by the committee, or
- (c) is guilty of any malfeasance, misfeasance, breach of trust or neglect of duty in respect of a trust, or
- (d) has misappropriated or improperly dealt with, the properties of the gurdwara or
- (e) is of unsound mind or physically unfit to discharge the functions of his office, or
- (f) is guilty of misconduct of such a character as to render him morally unfit for his office, or
- (g) fails persistently to perform his duties in connection with the management or performance of public worship or the management or performance of any rituals and ceremonies in accordance with the teachings of Sri Guru Granth Sahib, or
- (h) has ceased to be a Sikh.

¹[Provided that nothing contained in the provisions of this section shall debar the committee from prescribing with the approval of the Board the maximum period of service or age limit for its employees, including the Ministers of the Gurdwaras under its management. After the prescribed period of service or age limit, the employees, including the Ministers shall have to retire.]

135. Procedure when hereditary office-holder or minister is dismissed.— (1) Whenever the dismissal of a hereditary office-holder or of a minister is ordered, the order shall, except when it is based on facts or conclusions established at a judicial trial or when such office-holder or minister is absconding, be preceded by a recorded enquiry, and at such enquiry a definite charge in writing shall be framed in respect of each offence and explained to such office-holder or minister; the evidence in support of it and any evidence which he may adduce in his defence shall be recorded in his presence and his defence shall be taken down in writing, and on each of the charges framed a finding shall be recorded.

(2) A committee may suspend a hereditary office-holder or a minister pending an enquiry into the charges framed against him.

(3) Any hereditary office-holder who has been suspended or dismissed may within three months of the date of the order of suspension or dismissal, as the case may be, appeal either to the Board or to the Commission as he may elect: if he elects to appeal to the

¹Added by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 45.

Board the order of the Board shall be final, and if he elects to appeal to the Commission a further appeal shall lie to the High Court from the order of the Commission, provided that such appeal shall be made within ninety days of the date of the order.

(4) Any minister other than a hereditary office-holder who has been suspended or dismissed may within ninety days of the date of the order of suspension or dismissal, as the case may be, appeal to the Board and the order of the Board shall be final.

(5) When no appeal is preferred against an order of a committee suspending or dismissing a hereditary office-holder or a minister, as the case may be, such order shall be final.

(6) If in the opinion of the Board a hereditary office-holder or any minister of a Notified Sikh Gurdwara may be dismissed in accordance with the provisions of section 134, the Board may move the committee of such gurdwara to dismiss him, and if the committee does not within one month of being so moved dismiss such office-holder or minister, the Board may apply to the Commission to order his removal, and if the Commission finds that such office-holder or minister may be so dismissed, it may order his dismissal.

(7) When an application has been made to the Commission under the provisions of sub-section (6) the Commission may suspend from office, pending its decision, the person against whom the application has been made.

(8) Any hereditary office-holder dismissed under the provisions of sub-section (6) may, within ninety days of the date of the order of dismissal, appeal to the High Court.

(9) Notwithstanding anything contained in sub-section (3) or sub-section (4), when the Board acting as a committee under the provisions ¹[* *] of section 85 orders the suspension or dismissal of a hereditary office-holder, an appeal from such order shall lie only to the commission with a further appeal to the High Court as provided in sub-section (3), and when the Board acting as such committee orders the suspension or dismissal of a minister other than a hereditary office-holder the order of the Board shall be final; and nothing contained in sub-section (6), (7) or (8) shall be apply to the Board acting as such committee.

136. Appointment of ministers and office-holders.— (1) If after the commencement of this Act any vacancy occurs in an office connected with a Notified Sikh Gurdwara whether by reason of the death, dismissal or resignation of the office-holder or for any other reason, the committee of the gurdwara may appoint any person who in its opinion is qualified for the office to fill the vacancy: provided that if the last holder of the office was a hereditary office-holder who had not before the vacancy occurred received compensation under the provisions of section 20, and there is a presumptive successor of such last office-holder who desires to be appointed and has not received compensation under the provisions of section 20 the committee shall appoint such presumptive successor unless, in its opinion, he has not been properly ordained or his moral character is such as to render him unsuitable or his education has not been sufficient to render him fit for appointment.

(2) If any presumptive successor claims to be appointed to fill a vacancy in accordance with the provisions of sub-section (1) and the committee rejects his claim, he may, unless the committee is the Board acting as a committee under the provisions ²[* *] of section 85, within thirty days of the date of such rejection, appeal to the Board and the decisions of the Board shall be final.

¹Omitted the words, brackets and figure "of subsection (1)" by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 46.

²Omitted the words, brackets and figure "of subsection (1)" by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 47.

137. Registers to be kept for gurdwaras.— (1) The committee of every Notified Sikh Gurdwara, shall, as soon as may be, prepare registers in which shall be entered—

- (a) the names of past and present ministers of the gurdwara so far as these are known;
- (b) particulars of all immovable properties of the gurdwara, and the documents, if any, relating thereto;
- (c) particulars of the scheme of administration, if any;
- (d) the names of all offices connected with the gurdwara to which any salary, emoluments or perquisite is attached and the nature, period and conditions of service in each case;
- (e) the jewels, gold, silver, precious stones, vessels and utensils and other movable property belonging to the gurdwara with their estimated value; and
- (f) such other particulars as the Board may direct.

(2) The register shall be submitted through the committee to the Board within such period after the commencement of this Act as the Board may direct.

(3) The Board, after checking them, may direct that the registers be corrected in such manner as appears to be necessary.

(4) The registers as approved by the Board shall be kept by the committee of the gurdwara to which they relate, and copies thereof shall be kept by the Board.

(5) The committee shall cause the entries in the registers to be scrutinised annually and shall submit to the Board for its approval a verified statement showing the alterations, omissions or additions required therein.

(6) The Board may after checking the statement direct such alterations, omissions or additions to be made in the registers as it finds to be necessary.

(7) A copy of every order passed under the provisions of sub-section (3) or sub-section (6) shall be communicated to the committee and the committee shall carry out the alterations, omissions or additions ordered by the Board in the registers.

(8) The president of the Board or any servant authorised by him on this behalf or the president of the committee may grant copies of the registers or of any entries therein on payment of such fees as the Board may by bye-law prescribe; such copies shall be certified by the president of the Board or committee, as the case may be, in the manner provided in section 76 of the Indian Evidence Act, 1872¹.

(9) Nothing contained in sub-section (2), (3), (4), (6) or (7) or in sub-section (5) with the exception of the provision for the annual scrutiny of entries in registers shall apply to the committee constituted under the provisions ²[* *] of section 85.

138. Alienation of immovable Trust property.— ³[No exchange, sale, mortgage or other alienation of immovable property belonging to a Notified Sikh Gurdwara shall be valid unless it is sanctioned by the committee of the Gurdwara and by the Board, provided that the sanction of the Board shall not be necessary in the case of a lease of any such property for a term which does not exceed the remaining term of the existing committee by a period of more than one year.]

¹Now Qanoon-e-Shahdat, 1984 (X of 1984).

²Omitted the words, brackets and figure "of subsection (1)" by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 48.

³Substituted by the Act *ibid.*, s. 49.

139. Power of committee to make regulations.— A committee of a Notified Sikh Gurdwara may make regulations not inconsistent with the provisions of this Act or with any rules or bye-laws made thereunder, to regulate its procedure, provided that without the previous sanction of the Board no regulation shall be made—

- (i) authorising by name or office any person to receive, or sign acknowledgements of the receipt of any money on behalf of the committee, or
- (ii) prescribing the form in which accounts, returns and reports relating to the management of a gurdwara shall be maintained or submitted.

140. Power of committee to make regulations reofferings at Sikh Gurdwaras.— (1) The committee of a Notified Sikh Gurdwara may from time to time make regulations for the purpose of determining what portion of the offerings made at or in connection with such gurdwara shall be deemed to be the property of the gurdwara and regulating the division of such offerings or any portion of them between the various office-holders of such gurdwara.

(2) If no regulations have been made by a committee under the provisions of sub-section (1) all offerings made at, or in connection with, a Notified Sikh gurdwara shall be deemed to be the property of such gurdwara.

CHAPTER XII Miscellaneous

141. Salaries of office-holders to be their property.— The salary and allowances of a minister or other office-holder of a Notified Sikh Gurdwara and any property acquired by him out of his salary and allowances shall be the property of such minister or office-holder.

142. Right of interested persons to complain to commission in respect of misfeasance, etc.— ¹[(1) Notwithstanding anything contained in section 92 of the Code of Civil Procedure, 1908, or in the Specific Relief Act, 1877, any person having interest in a Notified Sikh Gurdwara may, without joining any of the other persons interested therein, make an application to the Commission, against the Board, the Executive Committee of the Board, or the Committee, or local committee, or against any member or past member of the Board, of the Executive Committee or of the Committee, or of the local Committee or against any office-holder or past officeholder of the Gurdwara or against any employee past or present of the Board or Gurdwara in respect of any alleged malfeasance, misfeasance, breach of trust, neglect of duty, abuse of powers conferred by this Act or any alleged expenditure on a purpose not authorised by this Act and the Commission, if finds any such malfeasance, misfeasance, breach of trust, neglect of duty, abuse of powers or expenditure proved, may consistently with the provisions of this Act and of any other law or enactment in force for the time being, direct any specific act to be done or forborne for the purpose of remedying the same and may award damages or costs against the person responsible for the same, and may order the removal of any office-holder or member of the Board, Executive Committee or Committee or local Committee responsible for the same and may also disqualify any member of the Board, Executive Committee, or Committee or local Committee thus removed from such membership for a period not exceeding five years from the date of such removal.

(2) The Board may make a similar application to the Commission which may, in like manner, dispose of it.

¹Substituted by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 50.

(3) The Board or any person aggrieved by an order passed by the Commission under the provisions of subsection (1) or subsection (2) may, within ninety days of the orders, appeal to the High Court.]

143. Notice of application to be given.— No application shall be made under the provisions of section 142 against the Board or a committee until the expiry of two months after notice in writing has been delivered to the Board or to the committee, as the case may be, stating the cause of action, the name, description and place of residence of the applicant and the relief which he claims, and the application shall contain a statement that such notice has been delivered.

144. Government not to interfere with gurdwaras except as provided by this Act or any other Act.— Save as provided in this or any other Act, it shall not be lawful for the ¹[Provincial Government] or for any executive officer of the ²[Provincial Government] in his official capacity to undertake or assume the superintendence of any land or other property granted for the support of, or otherwise belonging to, any Notified Sikh Gurdwara, to take any part in the management or appropriation of any endowment made for its maintenance, or to nominate or appoint any office-holder of, or be concerned in any way with such gurdwara.

145. Act of Board or committee not to be invalidated by informality.— No act of the Board, or its executive committee or of a committee shall be held invalid in any judicial proceeding on the ground of any defect in the constitution of the Board, executive committee or committee, as the case may be, or on account of any irregularity in the procedure of the Board, executive committee or committee, as the case may be, unless the defect or irregularity has occasioned a failure of justice.

146. Power of ³[Provincial Government] to make rules.— (1) The ⁴[Provincial Government] may make rules⁵ not inconsistent with the Act to carry out all or any of the purposes of the Act.

(2) In particular and without prejudice to the generality of the foregoing power, the ⁶[Provincial Government] may make rules for—

- (i) the registration of electors;
- (ii) the nomination of candidates, the times of elections to be held under the provisions of this Act, the mode of recording and counting votes and the declaration of the results of such elections;
- (iii) the conduct of enquiries and the decision of disputes relative to elections;
- (iv) the definition of the practices at elections held under the provisions of this Act which are to be deemed to be corrupt;

¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²*Ibid.*

³Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁴*Ibid.*

⁵For rules, see Home Department Notification No. 4289-S., dated 12th October, 1925, Punjab Gazette, Part I, dated October 16, 1925, pp. 712-713, Notification No. 4290-S, dated 12th October, 1925, vide Gazette *ibid.*, pp. 716-723, Notification No. 4291-S, dated 12th October, 1925, vide Gazette *ibid.*, pp. 730-738, Notification No. 27176, dated 7th December, 1925, vide Gazette *ibid.*, dated December 11, 1925, pp. 921-923, Notification No. 27342, dated 9th December, 1925, vide Gazette *ibid.*, dated December 11, 1925, pp. 924-925, Notification No. 4041-S, dated 2nd September, 1926, vide Gazette *ibid.*, dated 1926, Extraordinary, p. 67 and Notification No. 3336, dated 28th September, 1926, vide Gazette *ibid.*, dated October 1, 1926, p. 918.

⁶Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

- (v) the investigation of allegations of corrupt practices at such elections;
- (vi) making void the election of any person proved to have been guilty of a corrupt practice or to have connived at or abetted the commission of a corrupt practice or whose agent has been so proved guilty, or the result of whose election has been materially affected by the breach of any law or rule for the time being in force;
- (vii) rendering incapable of office, either permanently or for a term of years, any person who may have been proved guilty as aforesaid of a corrupt practice or of conniving at or abetting the same;
- (viii) prescribing the authority by which questions relating to the matters referred to in clause (i), (ii), (iii), (v), (vi) or (vii) shall be determined;
- (ix) the method by which the income of a gurdwara shall be calculated for the purpose of fixing the annual contribution described in section 107; and
- (x) the authority to whom, and the manner in which petitions, applications and records of suits or proceedings which may or should under the provisions of this Act be presented, made or forwarded, as the case may be, to a tribunal or to the Commission, as the case may be, are to be presented, made or forwarded when a tribunal or the Commission has not been constituted or is not sitting.

147. Powers of the ¹[Provincial Government] to invest with judicial powers officers appointed to enquire into conduct of elections.— The ²[Provincial Government] may invest any person or persons authorised by it to hold an enquiry into the conduct of, or into allegations of corrupt practices at, an election held under the provisions of this Act, with all or any of the powers conferred upon commissioners appointed to hold an inquiry into an election by the provisions of Part II of the Indian Election Offences and Inquiries Act, 1920³, and may prescribe the procedure to be followed, and provide for the execution of any order as to costs passed by such person or persons in such inquiry.

148. Language of the Commission.— The language of the Commission shall be such as the Commission may from time to time determine.

¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²*Ibid.*

³Now the Election Offences and Inquiries Act, 1920.

SCHEDULE I

[see sections 3 and 89]

Serial No.	District.	Tahsil.	Revenue Estate.	Name of Gurdwara.	Constituencies for Election of Committee of Management
1	Lahore	Lahore	Lahore City	Janam Asthan Guru Ram Das Ji	As prescribed in section 85.
2	"	"	"	Dera Sahib	Ditto.
3	"	"	"	Baoli Sahib	Ditto.
4	"	"	"	Lal Khuhi	Ditto.
5	"	"	"	Paihli Padshahi	Ditto.
6	"	"	"	Chhevin Padshahi	Ditto.
7	"	"	"	Shahid Ganj Bhai Taru Singh	Ditto.
8	"	"	"	Shahid Ganj Bhai Mani Singh	Ditto.
9	"	"	"	Diwan Khana (excluding shrine of Lali Devi).	Ditto.
10	"	"	"	Budhuda Awa	Ditto.
11	"	"	Muzang	Chhevin Padshahi	Ditto.
12	"	"	Hudiara	Hudiara ¹ [(Gurdawara Chhevin Padshahi)]	Zail Jahman.
13	"	"	Padhana	Padhana ² [(Gurdawara Chhevin Padshahi)]	Revenue estate of Padhana.
14	"	"	Dhilwan	Dhilwan ³ [(Gurdawara Chhevin Padshahi)]	Revenue estate of Dhilwan.
15	"	"	Ghawindi	Ghawindi	Revenue estates of Ghawind and Ghawindi.

¹Inserted by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (1) of s. 3.

²*Ibid.*

³Inserted by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (3) of s. 3.

Serial No.	District.	Tahsil.	Revenue Estate.	Name of Gurdwara.	Constituencies for Election of Committee of Management
16	"	"	Kamas	Kamas	Zails of Rangilpur, Jodhdhir and Badoke.
17	"	"	¹ [Dera Chahil]	² [Chahil (Gurdawara Paihli Padshahi)]	Revenue estates of ³ [Dera Chahil] and Kurbath.
18	"	⁴ [Chunian]	Kanganpur	Kanganpur ⁵ [(Gurdawara Paihli Padshahi)]	Revenue estate of Kanganpur.
19	"	"	Manga	Manga ⁶ [(Gurdawara Paihli Padshahi)]	Zails of Rangilpur, Jodhdhir and Baddoke.
20	"	"	Guru Mangat ⁷ [Kohna]	Guru Mangat ⁸ [(Gurdawara Chhevin Padshahi)]	Revenue ⁹ [estates of Guru Mangat Kohna, Ichchra and Lahore Cantonment]
21	"	"	Amar Sidhu	Amar Sidhu ¹⁰ [(Gurdawara Chhevin Padshahi)]	Revenue estate of Amar Sidhu.
22	"	"	Kahna	Kahna	Zail of Kahna.
23	"	Kasur	Rattoki	¹¹ [Gurdawara Baba Bir Singh]	Revenue estates of Rattoki, Gujjal, Asal, Uttar and Waltoha.

¹Substituted for the word "Chaihal" by the Act *ibid.*, sub-section (4) of s. 3.

²*Ibid.*

³*Ibid.*

⁴Substituted for the word "Lahore" by the Act *ibid.*, sub-section (5) of s. 3.

⁵Inserted by the Act *ibid.*

⁶*Ibid.*, sub-section (6) of s. 3.

⁷*Ibid.*, sub-section (7) of s. 3.

⁸*Ibid.*

⁹Substituted for the words "estate of Mangat" by the Act *ibid.*

¹⁰Inserted by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (8) of s. 3.

¹¹Substituted for the word "Rattoki" by the Act *ibid.*, sub-section (9) of s. 3.

Serial No.	District.	Tahsil.	Revenue Estate.	Name of Gurdwara.	Constituencies for Election of Committee of Management
24	"	Chunian	¹ [Jambar] Kalan	² [Gurdawara Panjam Padshahi]	Revenue estates of ³ [Jambar] Kalan, Jambhar Khurd and Khanki Maur.
25	"	"	Bhai Pheru	Bhai Pheru ⁴ [(Gurdawara Sangat Sahib)]	Tahsil of Chunian.
26	Amritsar	Amritsar	Amritsar City	Sri Harmandir Sahib (Darbar Sahib)	As prescribed in section 85.
27	"	"	"	Akal Takht Sahib ⁵ [(Akal Bunga)]	Ditto.
28	"	"	"	Baba Atal Sahib	Ditto.
29	"	"	"	Kaulsar and Mai Kaulan da Asthan	Ditto.
30	"	"	"	Ram Sar ⁶ [Manji Sahib]	Ditto.
31	"	"	"	Bibeksar	Ditto.
32	"	"	"	Tahli Sahib with Santokh Sar	Ditto.
33	"	"	"	Churasti Atari	Ditto.
34	"	"	"	Guru ke Maihl	Ditto.
35	"	"	"	Lohgarh	Ditto.
36	"	"	"	Thara Sahib	Ditto.
37	"	"	"	Pipli Sahib	Ditto.
38	Amritsar	Amritsar	Amritsar City	Chhawani Nahangan ⁷ [(Angitha Guru Naina Singh)]	As prescribed in section 85.
39	"	"	"	Shahid Ganj Baba Dip Singh Ji	Ditto.

¹Substituted for the word "Jhambar" by the Act *ibid.*, sub-section (10) of s. 3.

²Substituted for the words "Jhambar Kalan" by the Act *ibid.*

³Substituted for the word "Jhambar" by the Act *ibid.*

⁴Inserted by the Act *ibid.*, sub-section (11) of s. 3.

⁵*Ibid.*, sub-section (12) of s. 3.

⁶*Ibid.*, sub-section (13) of s. 3.

⁷Inserted by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (14) of s. 3.

Serial No.	District.	Tahsil.	Revenue Estate.	Name of Gurdwara.	Constituencies for Election of Committee of Management
40	"	"	Chabba	Sangrana Sahib	Revenue estate of Chabba.
41	"	"	¹ [Wallah]	Walla Sahib	Zail of Verka (excluding Amritsar Municipal area).
42	"	"	Baba Bakala	Baba Bakala	The police station area of Beas.
43	"	"	Chabba	Chabba	Revenue estate of Chabba.
44	"	"	Wadali Guru	² [Damdama Sahib]	Zail of Chabba.
45	"	"	Ditto.	Chheharta Sahib	Ditto.
46	"	"	Mian Randhawa	Udoke	Revenue estate of Udoke and mian Randhawa.
47	"	"	Sultanwind	Damdama Sahib	Revenue Estate of Sultanwind.
48	"	"	Verka	Nanak Sar	Revenue estate of Verka.
49	"	Tarn Taran	Khara	Dukh Niwaran	Revenue estates of Thathi and Khara.
50	"	"	Tarn Taran	Sri Darbar Sahib	As prescribed in section 85.
51	"	"	Naurangabad	Gurdwara Baba ³ [Wir] Singh Ji	Zail of Rasulpur.
52	"	"	Khadur Sahib	Sri Darbar Sahib Khadur Sahib	Revenue estate of Khadur Sahib.
53	"	"	Goindwal	Baoli Sahib	Revenue estate of Goindwal.
54	"	"	Chabhal Kalan	Bibi Wiro Ji da Asthan	Revenue estate of Chabhal Kalan.
55	"	"	⁴ [Khan Chhabri]	Chhabri Sahib	Revenue estates of Khan Chhabri, Jama Rai and Fatehabad.

¹Substituted for the word "Chabba" by the Act *ibid.*, sub-section (15) of s. 3.

²Substituted for the word "Guru-ki-Wadali" by the Act *ibid.*, sub-section (16) of s. 3.

³Substituted for the word "Bir" by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (17) of s. 3.

⁴Substituted for the word "Chhabri" by the Act *ibid.*, sub-section (18) of s. 3.

Serial No.	District.	Tahsil.	Revenue Estate.	Name of Gurdwara.	Constituencies for Election of Committee of Management
56	"	"	Sarhali Kalan	Chobacha Sahib	Revenue estate of Sarhali Kalan.
57	"	"	Chohla	Chohla Sahib	Police Station area of Sarhali.
58	"	"	Basarke	Basarke	Zail of Kasel.
59	"	"	Gaggo Buha	Gaggo Buha	Revenue estate of Gaggo Buha.
60	"	"	Hoshiarnagar	Guru Sar Satlani	Zails of Chicha, Gumtala, Attari, ¹ [Chabba] and Kasel.
61	"	"	Thatha	Bir Sahib	Zail of Panjwar.
62	"	"	Lohar	Dera Sahib	Revenue estate of Lohar and Jamrai.
63	"	Ajnala	Ghokewali	Guru-ka-Bagh	Tahsil Ajnala.
64	"	"	Dalla	Dalla-Kiralgarh	Zail of Chawinda.
65	"	"	² [**] Barar	³ [Barar Madoke]	Revenue Estate of ⁴ [Madoke] and Bara.
66	"	"	Ram Das	Ram Das	Police station areas of Ram Das and Ajnala.
67	"	"	Jandiala	Maihl Jandiala	Revenue estate of ⁵ [Kandowali, Sakhtonangal Pthan-nangal and Chetanpura]
68	Gurdaspur	Batala	Batala	Dera Sahib	Zail of Batala.
69	Gurdaspur	Batala	⁶ [Salho Chahal]	Achal Sahib Gurdwara (excluding Shiwala Talab Kalan and Shiwala Bhandarian).	Revenue estates of ⁷ [Salho Chahal] Chahal, Batala and Misarpur.

¹Substituted for the word "Chabha" by the Act *ibid.*, sub-section (19) of s. 3.

²Omitted the words "Madhoke and" by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (20) of s. 3.

³Substituted for the words "Madoki Barar" by the Act *ibid.*

⁴Substituted for the word "Madoki" by the Act *ibid.*

⁵Substituted for the word "Jandiala" by the Act *ibid.*, sub-section (21) of s. 3.

⁶Substituted for the word "Chahal" by the Act *ibid.*, sub-section (22) of s. 3.

⁷Inserted by the Act *ibid.*

Serial No.	District.	Tahsil.	Revenue Estate.	Name of Gurdwara.	Constituencies for Election of Committee of Management
70	"	"	¹ [Pakhoke Dera Nanak].	Darbar Sahib, Dera Baba Nanak	Tehsil of Batala.
71	"	"	² [Talwara]	Damdama Sahib	³ [Police Station of Srigobindpur].
72	"	"	⁴ [Pakhoke, Dera Nanak]	Chola Sahib (including Langar Mandar Chola Sahib)	Zail of Singhpura.
73	"	"	Teja ⁵ [kalan]	Teja	Tahsil of Batala.
74	"	"	Othian	Othian	Zails of Bhular, Dholpur and Marar.
75	"	Gurdaspur	Fateh Nangal	Burj Sahib	Revenue estates of Fateh Nangal, Rania and Dhariwal (mills).
76	"	"	Gurdaspur	Jhulna Mahal	Revenue estates of Gurdaspur, Shahzada Nangal and Kotli Nangal.
77	"	"	Dhariwal	Gurdwara Dhariwal	Revenue estates of Gurdas Nangal, Japuwal, Sohal and Dhariwal.
78	"	"	Bhumbli	Bhumbli	Revenue estates of Bhumbli, Alawalpur and Babri Nangal.
79	"	Shakargarh	Kot Naina	Darbar Kot Naina	Zails of Sujawal and Kot Bachna.
80	"	"	Doda	Kartarpur Sahib	Tahsils of Batala, Gurdaspur, Shakargarh and Narowal.

¹Substituted for the words "Pakhoke, Dera Baba Nanak" by the Act *ibid.*, sub-section (23) of s. 3.

²Substituted for the word "Srigobindpur" by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (25) of s. 3.

³Substituted for the words "Revenue estate" by the Act *ibid.*, sub-section (24) of s. 3.

⁴Substituted for the words "Pakhoke, Dera Baba Nanak" by the Act *ibid.*, sub-section (26) of s. 3.

⁵Substituted for the word "Khurd" by the Act *ibid.*, sub-section (27) of s. 3.

Serial No.	District.	Tahsil.	Revenue Estate.	Name of Gurdwara.	Constituencies for Election of Committee of Management
81	"	Pathankot	Bharat Lahri	Darbar Sahib Bharat	Tahsil of Pathankot.
82	Sialkot	Sialkot	Sialkot City	Babe-de-Ber	Tahsil of Sialkot.
83	"	"	"	Shahid Bunga	Ditto.
84	"	"	"	Baoli Sahib	¹ [Tehsil of Sialkot]
85	"	"	Salehpur	Tahli Sahib ² [(Guru Sar)]	³ [Tehsil of Sialkot]
86	"	Daska	Sahowala	Gurdwara Nanaksar	Revenue estate of Sahowwala.
87	"	"	Galotian Khurd	Darbar Sahib Guru Har Rai Sahib	Revenue estates of Galotian Khurd and Sabho Sarai.
88	"	"	Sihoke	Gurdwara Nankana Sahib	Revenue estate of Sihoke.
89	"	Narowal	Nunar	Nunar	Zails of Dhamthal and Baiolpur.
90	Gujranwala	Gujranwala	Eminabad	Rohri Sahib	Tahsil of Gujranwala.
91	"	"	"	Chakki Sahib ⁴ [(Dharmasala Sangalwali <i>alias</i> Kundewali)]	Tahsil of Gujranwala.
92	"	"	Chak Ram Das	Dera Baba Parana	Revenue estate of Chak Ram Das.
93	"	"	Mattu Bhaik	Gurdwara Mattu Bhaik ⁵ [(Gurdwara Chhevin Padshahi)]	Police Station area of Naushera Virkan.
94	"	Wazirabad	Wazirabad	Guru Kotha	Police station areas of Sadar Wazirabad and City Wazirabad.

¹Substituted for the words "Municipal area of Sialkot" by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (28) of s. 3.

²Inserted by the Act *ibid.*, sub-section (29) of s. 3.

³Substituted for the words "Revenue estate of Salehpur" by the Act *ibid.*

⁴Inserted by the Act *ibid.*, sub-section (30) of s. 3.

⁵Inserted by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (31) of s. 3.

Serial No.	District.	Tahsil.	Revenue Estate.	Name of Gurdwara.	Constituencies for Election of Committee of Management
95	"	"	"	Dharmsala Bhai Abnasha Singh	Tahsil of Wazirabad.
96	"	Hafizabad	Bache Nau	Bache Nau	Tahsil of Hafizabad.
97	"	"	Hafizabad	Chhevin Padshahi	Ditto.
98	Sheikhupura	Sheikhupura	Chuhar Kana	Sacha Sauda (or Khara Sauda)	Tahsils of Sheikhupura and Nankana Sahib.
99	"	Shahdara	Nangal Sadhan	Nangal Sadhan	Zails of Kot Pindi Das, Moridke and Nat.
100	"	"	Nankana Sahib	Janam Asthan	As prescribed in section 85.
101	"	"	"	Gurdwara Bal Lila	Ditto.
102	"	"	"	Kiara Sahib	Ditto.
103	"	"	"	Mal Ji Sahib	Ditto.
104	"	"	"	Chhevin Padshahi	Ditto.
105	"	"	"	Tambu Sahib	Ditto.
106	"	"	Haft Madar	Gurdwara Haft Madar	Zail of Kila Dharm Singh.
107	Gujrat	Gujrat	Gujrat	Chhevin Padshahi	Tahsil of Gujrat.
108	"	Phalia	Mangat	Bhai Bano Ji	Tahsil of Phalia.
109	"	"	Ker Bawa	Ker Bawawali	Ditto.
110	Attock	Attock	Hassan Abdal	Panjah Sahib	As prescribed in section 85.
111	Jhelum	Jhelum	Rakh Rohtas	Choha Sahib	Tahsil of Jhelum.
112	Shahpur	Sargodha	¹ [Mansehra Chak 127, S.B.]	Guru Sar	Revenue estates of ² [Mansehra Chak 127, S.B.], Chak 128, Chak 131, Chak 129, S.B.

¹Substituted for the words "Chak 127-S.B." by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (32) of s. 3.

²Substituted for the words "Chak 127" by the Act *ibid*.

Serial No.	District.	Tahsil.	Revenue Estate.	Name of Gurdwara.	Constituencies for Election of Committee of Management
113	Montgomery	Montgomery	Chak 103, 7-R	Nanak Sar (or Dera Baba Nanak)	Police station area of Harappa.
114	-	-	Kamalia	Prem Sati	Police station ¹ [areas of Kamalia and Kassowal]
115	-	Pakpattan	Nanaksar	Nankana Sahib	Zails of ² [Pakpattan], Kumariwala and Malekataru.
116	-	Dipalpur	Dipalpur	Gurdwara Paihli Padshahi	Zails of Dipalpur and Mancheris.
117	-	Okara	Nankana Jagir	Nankana Sahib	Zails of ³ [Kamman and Mopalke]
118	Hoshiarpur	Una	Anandpur	Sri Takht Kesgarh Sahib	As Prescribed in section 85.
119	"	"	⁴ [Anandpur]	Taragrah	The same as prescribed for No.120.
120	"	"	Anandpur	Navin Padshahi Guru Tegh Bahadur	As prescribed in section 85.
121	"	"	"	Bohra Sahib	Ditto.
122	"	"	"	Damdama Sahib	Ditto.
123	"	"	⁵ [Lodhpur]	Qila Anandgarh Sahib	Ditto.
124	"	"	^{6,7} [Bhatoli]	Charan Kanwal	Ditto.
125	"	"	Lodhipur	Lohgarh	The same as prescribed for No.120.
126	"	"	Basali ⁸ [Nurpur]	Basali	Ditto.
127	"	"	⁹ [Anandpur]	Holgarh	Ditto.

¹Substituted for the words "area of Kmalia" by the Act *ibid.*, sub-section (33) of s. 3.

²Substituted for the word "Pattan" by the Act *ibid.*, sub-section (34) of s. 3.

³Substituted for the words "Kamas and Satgarhe" by the Act *ibid.*, sub-section (35) of s. 3.

⁴Substituted for the word "Tarapur" by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (36) of s. 3.

⁵Substituted for the word "Anandpur" by the Act *ibid.*, sub-section (37) of s. 3.

⁶*Ibid.*, sub-section (38) of s. 3.

⁷Substituted for the word "Kiratpu" by the Sikh Gurdawaras (Amendment) Act, 1930 (III of 1930) vide Notification No. 116, dated 8th October 1930, published in the Punjab Gazette (Extraordinary), dated October 10, 1930, pp. 107-108, s. 10.

⁸Inserted by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (39) of s. 3.

⁹Substituted for the word "Chak" by the Act *ibid.*, sub-section (40) of s. 3.

Serial No.	District.	Tahsil.	Revenue Estate.	Name of Gurdwara.	Constituencies for Election of Committee of Management
128	"	"	Agampur	Mata ¹ [Jito] Ji	Ditto.
129	"	"	Kiratpur	Baba Gurditta Ji	Ditto.
130	"	"	"	Shish Mahal	Ditto.
131	"	"	"	Takhat Sahib	Ditto.
132	"	"	"	Manji Sahib	Ditto.
133	"	"	"	Hari Mandir Sahib	Ditto.
134	"	"	"	Patalpuri	Ditto.
135	"	"	"	Babangarh	Ditto.
136	"	"	Bhabaur	Bhabaur	Ditto.
137	"	"	Bathu	Gurplah	Ditto.
138	"	"	Kalmot	Kalmot	Ditto.
139	"	"	Chandpur	Chandpur	Ditto.
140	"	"	Jandbari	Jandbari	Ditto.
141	"	Dasuya	Bodal	Gurna Sahib	Police Station areas of Dasuya and Tanda.
142	"	Hoshiarpur	² [Lehli Kalan]	Jand Sahib	Revenue estate of Lehli ³ [Kalan]
143	"	"	Bajraur	Harian Welan	Zail of ⁴ [Saido Patti].
144	"	"	Bhungarni	Bhungarni	Revenue estate of Bhungarni.
145	Hoshiarpur	Hoshiarpur	Purhiran	Zahira Zahur	Revenue estates of Purhiran Khawaspur (Piplanwala), Dhakkowal, Hoshiarpur and Bilaspur.
146	"	Garhshankar	Gondpur	Tahli Sahib	Revenue estates of Gondpur, Sarhala Khurd, Nangal ⁵ [.] Kalan ⁶ [Daduwal and Khera].
147	Jullundur	Phillaur	⁷ [Mau]	¹ [Mau]	Zails of Mianwal and Phillaur.

¹Substituted for the word "Jita" by the Act *ibid.*, sub-section (41) of s. 3.

²Substituted for the words "Waddi Lehli" by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (42) of s. 3.

³Inserted by the Act *ibid.*

⁴Substituted for the words "Pandori Bibi" by the Act *ibid.*, sub-section (43) of s. 3.

⁵Inserted by the Act *ibid.*, sub-section (44) of s. 3.

⁶Substituted for the words "and Daduwal Khera" by the Act *ibid.*

⁷Substituted for the word "Man" by the Act *ibid.*, sub-section (45) of s. 3.

Serial No.	District.	Tahsil.	Revenue Estate.	Name of Gurdwara.	Constituencies for Election of Committee of Management
148	"	Nawashahr	Pharala	Gurdwara Guru Har Rai Sahib	Revenue estate of Pharala.
149	"	"	Chak Guru	Gur Palah	Revenue estate of Chak Guru.
150	"	"	Hakimpur	Nanaksar	Revenue estate of Hakimpur.
151	"	"	Jindwal	Charan Kanwal	Revenue estates of Banga, Jindwal and Sotran.
152	"	"	Sotran	² [Gurplah]	Ditto.
153	"	"	Durgapur	³ [Gurdawara Guru Har Gobind]	Revenue estates of Durgapur.
154	Ludhiana	Ludhiana	Gujarwal	Manji Sahib	Police station area of Dehlon.
155	"	"	"	Guru Granth Sahib	Ditto.
156	"	"	Alamgir	Gurdwara Alamgir ⁴ [(Manji Sahib)]	Zail of Dhandari.
157	"	"	Kanech	⁵ [Gurdwara Manji Sahib]	Zail of Sahnewal.
158	"	Samrala	Machhiwara	⁶ [Charan Kanwal]	Revenue estates of Machhiwara and Lidheran.
159	"	Jagraon	Mohi	Mohi	Zail of Mohi.
160	"	"	Silowani	⁷ [Gurdwara Silowani]	Zail of Raikot.
161	"	"	Raikot	Tahlana Sahib	Zail of Raikot and Basian.
162	"	Samrala	Chuharpur	Jhar Sahib	Police station area of Machhiwara.

¹*Ibid.*

²Substituted for the word "Sotran" by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (46) of s. 3.

³Substituted for the word "Durgapur" by the Act *ibid.*, sub-section (47) of s. 3.

⁴Inserted by the Act *ibid.*, sub-section (48) of s. 3.

⁵Substituted for the word "Kanech" by the Act *ibid.*, sub-section (49) of s. 3.

⁶Substituted for the words "Kanwal Sahib" by the Act *ibid.*, sub-section (50) of s. 3.

⁷Substituted for the words "Guru Govind Singh Sahib" by the Act *ibid.*, sub-section (51) of s. 3.

Serial No.	District.	Tahsil.	Revenue Estate.	Name of Gurdwara.	Constituencies for Election of Committee of Management
163	"	Jagraon	Sidhwan Kalan	Sri Guru ¹ [Hargobind] Singh	Revenue estates of ² [*] Sidhwan Kalan and ³ [Sidhwan Khurd].
164	"	"	Sadhar	⁴ [Gurdwara Sri Guru Hargobind and Guru Sar Chhevin Padshahi]	Zail of Akalgarh.
165	"	"	Lama Jatpura	⁵ [Gurdwara Guru Sar]	Tahsil of Jagraon.
166	"	"	Chakar	Guru Sar	Zail of Mallah.
167	"	"	Kaonke Kalan	Ditto.	Zail of Kaonke.
168	"	"	Hehran	Hehran	Ludhiana District.
169	Ferozepore	Ferozepore	Bazidpur	Guru Sar Bazidpur	Municipal area of Ferozepore and revenue estates of Bazidpur, Badni Gulab Singh, Bangar, Shakur, Ratti Khera and Dhindsa.
170	"	"	⁶ [Chak Fateh Singhwala]	Gurdwara Guru Gobind Singh	Revenue Estates of ⁷ [Chak Fateh Singhwala], Chak Ram Singh and Chak Bakhtu.
171	"	"	Nathana	Guru Sar ⁸ [Nathana]	Revenue estate of Nathana.
172	"	"	Mehraj	Guru Sar ⁹ [Mehraj]	Police station area of Nathana.

¹Substituted for the words "Gobind Singh" by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (52) of s. 3.

²Omitted the words "Sdhwan Bet" by the Act *ibid.*

³Substituted for the word "Jandi" by the Act *ibid.*

⁴Substituted for the words "Sri Gobind Singh and Chhevin Padshahi" by the Act *ibid.*, sub-section (53) of s. 3.

⁵Substituted for the words "Lama Jatpura" by the Act *ibid.*, sub-section (54) of s. 3.

⁶Substituted for the words "Chak Fateh Singh" by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (55) of s. 3.

⁷*Ibid.*

⁸Inserted by the Act *ibid.*, sub-section (56) of s. 3.

⁹*Ibid.*, sub-section (57) of s. 3.

Serial No.	District.	Tahsil.	Revenue Estate.	Name of Gurdwara.	Constituencies for Election of Committee of Management
173	"	Moga	Daroli Bhai	Dhera Daroli Bhai	Revenue estate of Daroli Bhai.
174	Ferozepore	Moga	Lopon	Guru Sar	Revenue estate of Lopon.
175	"	"	Madoke	¹ [Guru Sar Madoke]	Revenue estate of Madoke.
176	"	"	Wada Ghar	Chhevin Padshahi	Revenue estate of Wada Ghar and Chhota Ghar.
177	"	"	Takhtupura ² [*]	³ [Nanaksar]	Police station area of Nihal Singhwala.
178	"	"	⁴ [Madya]	Pakka Sahib	Revenue estate of ⁵ [Madya]
179	"	"	Dina	Lohgar Sahib	Tahsil of Moga.
180	"	"	Patto Hira Singh	Guru Sar	Revenue estate of Patto Hira Singh.
181	"	"	Salina	Ditto.	Revenue estate of Salina.
182	"	"	Dagroo	Tamboo Mal	Revenue estate of Dagroo.
183	"	"	Mehron	Mehron	Revenue estate of Mehron.
184	"	"	Banbiha Bhai	Nanak Sar	Revenue estate of Banbiha Bhai.
185	"	"	Wandar	Guru Gobind Singh	Revenue estate of Wandar.
186	"	"	Smadh Bhai	Gurdwara Guru Granth Sahib, Mohtamim Prem Das.	Police station area of Bagha Purana.
187	"	"	Mari Mustafa	Mari Mustafa	Revenue estate of Mari Mustafa.
188	"	Muktsar	Muktsar	Darbar Sahib	As prescribed in section 85.
189	"	"	"	Tamboo Sahib	Ditto.

¹Substituted for the word "Madoke" by the Act *ibid.*, sub-section (58) of s. 3.

²Omitted the words "and Takhtupura Nanaksar" by the Act *ibid.*, sub-section (59) of s. 3.

³Substituted for the words "Gurdwara Daswin Padshahi" by the Act *ibid.*

⁴Substituted for the word "Mahdevki" by the Act *ibid.*, sub-section (60) of s. 3.

⁵*Ibid.*

Serial No.	District.	Tahsil.	Revenue Estate.	Name of Gurdwara.	Constituencies for Election of Committee of Management
190	"	"	"	Shahid Ganj	Ditto.
191	"	"	"	Tibbi Sahib	Ditto.
192	"	"	Sarai Nanga	Pahli Padshahi and Dusri Padshahi	¹ [District of Ferozepore]
193	"	"	Rupana	Guru Sar	Revenue estates of Rupana.
194	"	"	Guru Sar	Ditto.	Revenue estate of Guru Sar.
195	"	"	Thehari	Guru Gobind Singh	Revenue estate of Thehari.
196	"	"	Chhatiana	Guptsar and Sahib Chand	Revenue estates of Chhatiana and Sahib Chand.
197	"	Zira	Khosa Kotla	Guru Sar	Revenue estates of Khosa Kotla, ² [Khosa Randhir] and Khosa Pando.
198	"	"	³ [Sunehr]	Ditto.	Revenue estate of ⁴ [Sunehr]
199	"	"	Thatha	Chhevin Padshahi	Revenue estate of Thatha.
200	Rawalpindi	Gujar khan	Narali	Ditto.	Revenue estate of Narali.
201	Hissar	Sirsa	Sirsa	Gurdwara Guru Gobind Singh	Tahsil of Sirsa.
202	"	"	Dabwali	Guruasthan Dabwali	Revenue estate of Dabwali.
203	"	"	Kewal	Kewal	Revenue estate of Kewal.
204	"	Fatehabad	Ratia	Ratia	Police station area of Ratia.

¹Substituted for the words "Zail of Varing" by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (61) of s. 3.

²Substituted for the words "Khos, Randhir" by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (62) of s. 3.

³Substituted for the word "Saneri" by the Act *ibid.*, sub-section (63) of s. 3.

⁴*Ibid.*

Serial No.	District.	Tahsil.	Revenue Estate.	Name of Gurdwara.	Constituencies for Election of Committee of Management
205	Rohtak	Rohtak	Rohtak	Bangla Sahib (excluding temples of goddess Sitla and Manji Sahib).	Tahsil of Rohtak.
206	"	Gohana	Lakhan Mazra	Manji Sahib	Tahsils of Rohtak and Gohana.
207	Karnal	Karnal	Karnal	Manji Sahib	District of Karnal.
208	"	Thanesar	Thanesar	Sidh Batti	Ditto.
209	"	"	"	Chhevin Padshahi	Ditto.
210	"	"	¹ [Bhari]	Navin Padshahi	Ditto.
211	"	"	"	Satvin Padshahi	Ditto.
212	"	"	"	Dasvin Padshahi	Ditto.
213	"	"	"	Kurchhetar	Ditto.
214	"	"	² [Bani and Badarpur]	Guru Tegh Bahadur	Tehsil of Thanesar.
215	Ambala	Ambala	Ambala City	Sis Ganj	Ambala municipal area.
216	"	"	"	Dasvin Padshahi Labhuwala	Ditto.
217	"	"	"	Dasvin Padshahi	Ditto.
218	"	"	³ [Khurrampur Majri]	Manji Sahib	Ditto.
219	"	"	-	Mohalla Mehr Dhumain	Ditto.
220	"	"	Panjokhra	Guru Har Kishan Sahib	Revenue estates of Panjokhra, Barnala, Garnala, Janetpur, Kallar Heri.
221	"	"	Madron	Mardon	Revenue estates of Tharwah, Majri and Mardon.

¹Substituted for the word "Thanesar" by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (64) of s. 3.

²Substituted for the words "Bani Badarpur" by the Act *ibid.*, sub-section (65) of s. 3.

³Substituted for the words "Ambala City" by the Act *ibid.*, sub-section (66) of s. 3.

Serial No.	District.	Tahsil.	Revenue Estate.	Name of Gurdwara.	Constituencies for Election of Committee of Management
222	"	"	Bhanon Kheri	Guru Gobind Singh Sahib	Revenue estate of Bhanon Kheri.
223	"	"	Sular	Sular	Revenue estate of Sular and Balana.
224	"	"	Chhani	Gurdwara Chhani	Revenue estates of Langar Chhani and Kesri.
225	"	Naraingarh	Raipur	Ranike Raipur and Manak Tabra	¹ [Tehsil of Naraingarh]
226	"	Jagadhri	Bilaspur	Gurdwara Guru Gobind Singh Sahib in Gopal Mochan.	Revenue estates of Dariapur Choli, Basantianwala, Dharamkot, Ambwala, Chagnaoli, Machrol and Bilaspur.
227	"	"	Bilaspur	Bilaspur Gurdwara	Zail of Bilaspur.
228	"	"	Jagadhri	Gurdwara Jagadhri	Zail of Jagadhri.
229	"	"	Balachaur	Agampura	Revenue estate of Balachaur.
230	"	"	Sudhal	Sudhal	² [Zail of Harnaul]
231	"	Rupar	Chamkaur	Gurdwaras of Damdama Sahib Katalgarh, Tilak Asthan.	Police station area of Morinda.
232	"	"	Kotla Nihang	Bhatta Sahib	Zail of Kotla Nihang.
233	"	"	Rupar	Rupar	Zail of Rupar.
234	"	"	Morinda	Morinda	Revenue estates of Morinda, Marauli Kalan, Dhangrali and Rangyan.

¹Substituted for the words "Revenue estates of Raipur and Manak Tabra" by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (67) of s. 3.

²Substituted for the words "Revenue estate of Sudhal" by the Act *ibid.*, sub-section (68) of s. 3.

Serial No.	District.	Tahsil.	Revenue Estate.	Name of Gurdwara.	Constituencies for Election of Committee of Management
235	"	"	Bur Marja	Bur Marja	Revenue estates of Bur Majran, Dhanauri, Kainaur and Sehar Majra.
236	"	"	Bir Guru	Jand Sahib	Zail of Bela.
237	"	"	Saheri	Saheri	Revenue estates of Saheri, Rangilpur, Dhangrali and Kainaur.
238	"	Kharar	Mani Majra	Manji Sahib	Zail of Chandigarh.
239	"	"	¹ [Khizrabad]	² [Khizrabad] Gurdwara Baba Zorawar Singh.	Zails of Kurali and ³ [Khizrabad]
240	Jhang	Jhang	Nanaksar	Gurdwara Nanaksar	Tahsil of Jhang.
241	Multan	Multan	Multan City	Dharamsala Bhai Dyalji	Municipal area of Multan and the tahsil of Kabirwala.

¹Substituted for the word "Khidarabad" by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, sub-section (69) of s. 3.

²*Ibid.*

³*Ibid.*

SCHEDULE II

[see section 7]

Serial No.	District.	Revenue Estate.	Name of Institution.
1	Lahore	Lahore City	Dera Baba Bela Singh.
2	"	Lamme Jagir	Dera Pandit Gurmukh Singh.
3	"	Lidhar	Dera Bhai Parshotam Singh.
4	Amritsar	Amritsar City	Akhara Santokh Das Mahant Brahm Buta.
5	"	"	Akhara bala Nand.
6	"	"	Akhara Pritam Das or Nirban Katra.
7	"	"	Akhara Kanshiwala inside Sultanwind Gate.
8	"	"	Akhara Beriwala.
9	"	"	Akhara Chatterwala.
10	"	"	Akhara Chitta.
11	"	"	Akhara Nirban Bawa Tehldas.
12	"	"	Akhara Kanihiwala Ghi Mandi.
13	"	"	Akhara Babeksar.
14	"	"	Akhara Sangalwala.
15	"	"	Dera Mahant Misra Singh.
16	"	"	Dera Thakran.
17	"	"	Dera Antarjamian.
18	"	"	Dera Bhai Parduman Singh.
19	"	"	Nirmal Chhetar.
20	"	"	Dera Mahant Gurmukh Singh.
21	"	"	Dera Punchhian.
22	"	"	Dera Mahant Bahawal Singh.
23	"	"	Dera Giani Bakhshish Singh.
24	"	"	Dera Mahant Basant Singh.
25	"	"	Dera Baba Budh Singh.
26	"	"	Dera Sainlok Ram Singh.
27	"	"	Dera Wairanwala.
28	"	"	Dera Baba Joga Singh.
29	"	"	Dera Bhai Sewa Singh.
30	"	"	Dharamsala Mai Sarsati.
31	Amritsar	Amritsar City	Dera Chatterwala.

Serial No.	District.	Revenue Estate.	Name of Institution.
32	"	"	Dharamsala Brahm Hazura, opposite Akhara Balanana.
33	"	"	Dharamsala Bawa Rattan Hari.
34	"	"	Dharamsala Baba Mela Ram.
35	"	"	Dharamsala Baba Har Das.
36	"	"	Dera Gyani Babek Singh.
37	"	Tarn Taran	Dera Bhai Tara Singh.
38	Gurdaspur	Shankarpur	Dera Sant Mohan Singh.
39	"	Qadian	Dera Sant Nihal Singh.
40	"	Batala(Revenue estate No. 211)	Dera Bagh Bawa Saran Das.
41	Sialkot	Bahadurpura	Sadh Akhar Sukh Ram Das.
42	Sheikhupura	Warn	Dera Ganga Ram.
43	"	Mirowal	Dharamsala Narain Das.
44	"	Shahdara	Dera Bhai Mahtab Singh.
45	Gujrat	Mangat	Dera Rocha Singh.
46	"	"	Dera Partap Singh.
47	"	Sohawa Bolani	Dera Charan Das.
48	"	Dhal Tibbi Tannan, Nauth Dingah	Dera Mahant Bashambar Parshad.
49	"	Sarai Alamgir	Dera Sahiban.
50	"	Dingah	Mandar Udasian.
51	"	Murala	Dera Mahant Prem Singh.
52	"	Shahdiwal	Samadi Bhagat Lorinda Mal.
53	"	Nanwan Nazul	Samadi Bawa Mansa Ram.
54	"	"	Samadi Bawa Tappa.
55	"	Bhakhariali	Samadi Bawa Sundar Das.
56	"	Jalalpur-Jattan	Samadi Bawa Gobind Bakhsh.
57	Rawalpindi	---	Dera Baba Mohan Das.
58	"	Rawalpindi City	Darbar Narankanian.
59	"	Thoha Khalsa	Dukh Bhanjani or Dera Bhai Nihal Singh.
60	"	---	Dera Baba Mast Ram or Makan of Barandari.
61	"	Ganj Mandi, Rawalpindi City	Dera Mahant Nand Singh.
62	"	Sukho	Dera Mahant Jawahar Singh.

Serial No.	District.	Revenue Estate.	Name of Institution.
63	Attock	Shakardara	Gurdwara Shakardara.
64	Jhelum	Mangoal	Dera Mahant Amar Singh.
65	"	Mahal Chahi	Dera Takhran.
66	"	Maghiana	Gurdwara Bawa Gobind Das.
67	"	"	Gurdwara Bhai Nand Singh.
68	Montgomery	Bhajangarh	Dera Sant Singh Ji.
69	Multan	Multan City, Taraf Juma Khalsa	Asthan Deopura.
70	Hoshiarpur	Bahadurpur	Dera Baba Charan Shah.
71	"	Daffar	Dhakki.
72	"	Khuddah	Dehra.
73	"	Tanda	Mastgarh.
74	"	Tooto Mazara	Dharamsala.
75	"	Mali	Chini Ghati.
76	Jullundur	Alawalpur	Dera Maru Das.
77	Ludhiana	Bhaini	Bhaini Sahib.
78	"	Baraich	Dera Gur Parshad.
79	"	Gurah	Dera Puran Das.
80	Ferozepore	Smadh Bhai	Dera Guru Granth Sahib, Gurmukh Das Mohtmim
81	"	Gholia Khurd	Dera Bhai Gulab Singh.
82	"	Nathuwala	Dera Bhai Bhajan Singh.
83	"	Daodhar	Dera Bhai Mangal Singhwala.
84	"	Rania	Dera Bhai Khalak Singh.
85	"	Muktsar	Dera Bhai Mastan Singh.
86	"	Harike Kalan	Dera Bhai Ran Singh.
87	"	Sekhwan	Dera Sekhwan.
88	Hissar	Rohri	Dera Mahant Bishudhanand.
89	"	Kewal	Dera Kewal.
90	"	Kalanwali	Dera Kalanwali.
91	"	Takhtmal	Dera Mahant Chhetanand.
92	Karnal	Shahabad	Dera Sadh Charan Das, Devi Tal.
93	"	Thanesar	Bara Akhara, Kurukshetra.
94	"	"	Chhota Akhara, Kurukshetra.
95	Karnal	Thanesar	Dera Kumerwala (known as Dera

Serial No.	District.	Revenue Estate.	Name of Institution.
			Mahant Sampuran Singh).
96	"	Sirsala	Dera Sadh Charan Das.
97	"	Fatehgarh Jharauli	Dera Fatehgarh Jharauli.
98	"	Lakmari	Dera Bishan Das Sadh.
99	"	Sagri	Dera Asthal Ram Kishan Sadh.
100	"	Ladwa	Dera Bawa Prem Das.
101	"	Kanipla	Dera Sadh Jamna Das.
102	"	Khurdban	Dera Udasian.
103	"	Umri	Ditto.
104	"	Bapdi	Dera Harnam Das Sadh.
105	"	Jogi Mazra	Dera Sadhni.
106	"	Khera Sudhpur	Dera Sadh Lachman Das.
107	"	Bapauli	Dera Sadh Mohan Das.
108	"	Mehra	Dera Sadhni.
109	"	Nalwi Mahman Singh	Dera Nirmala Sikh.
110	"	Pahowa	Dera Mahant Charan Das (known as Chhota Akhara).
111	"	"	Dera Mahant Deva Das (known as Bara Akhara).
112	"	"	Dera Mahant Thaman Das (known as Dera Nirmala).
113	"	Arnauli	Dera Udasian.
114	"	"	Dera Nirmala Sikhan, Bhagal.
115	"	Shamgarh	Dera Udasian.
116	"	Fatehgarh	Dera Prem Das.

SCHEDULE III

[see section 35]

Section	Description of the document	Proper fee
3	List of property alleged to belong to scheduled gurdwara.	Ten rupees.
5	Petition of claim to property included in a consolidated list.	Five rupees.
6	Claim for compensation by hereditary office-holder of a Notified Sikh Gurdwara or his presumptive successor.	Five rupees.
7	Petition to have a gurdwara declared to be a Sikh Gurdwara.	Ten rupees.
8	Petition to have it declared that a gurdwara is not a Sikh Gurdwara.	Ten rupees.
10	Petition of claim to property included in a list published under section 7.	Five rupees.
11	Claim for compensation by hereditary office-holder of a gurdwara notified under section 7 or his presumptive successor.	Five rupees.
19	Petition for consideration of an agreement by tribunal.	Five rupees.
20	Claim to compensation by hereditary office-holder who has resigned or been dismissed or by his presumptive successor.	Five rupees.
21	Claim to compensation by person alleging right to nominate office-holder.	Five rupees.
26	Application to have entry made in revenue records.	Eight annas.
27	Petition to have it determined who shall manage dedicated property, etc.	Five rupees.
34	Appeal to High Court against order of tribunal.	Ten rupees.
38	Suit to have it declared that provisions of Part III should be applied to a gurdwara.	Ten rupees.
84	Application to Commission to have it decided whether a person is a patit.	Five rupees.
106 (3)	Application to Commission by Board for order relating to disposal of surplus income of Sikh Gurdwara.	Five rupees.
106 (5)	Appeal to High Court by Board or a Committee.	Ten rupees.
123 (3)	Application by Board to Commission for alteration of Committee's budget.	Five rupees.
124	Application to Commission for order against	One rupee.

Section	Description of the document	Proper fee
	Committee for recovery of annual contribution.	
¹ [130] (2) and (4)	Application to Commission relating to scheme of administration.	Five rupees.
135 (3)	Appeal by hereditary office-holder to Commission against order of suspension or dismissal.	Five rupees.
135 (3)	Further appeal to High Court.	Ten rupees.
135 (6)	Application to Commission by Board for order of dismissal of hereditary office-holder.	Five rupees.
135 (8)	Further appeal to High Court.	Ten rupees.
142 (1) and (2)	Application to Commission for relief against misfeasance, etc.	Ten rupees.
142 (3)	Appeal to High Court.	Twenty-five rupees.
	Miscellaneous applications under the Act.	One rupee.

¹Substituted for the figure "131" by the Sikh Gurdawaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, s. 4.

¹[**SCHEDULE IV**²
[see section 44]

District	Serial No. of Constituency	Constituency
Hissar	1	The tahsils of Hissar, Hansi and Bhiwani, and the zail of Ratia of tahsil of Fatehabad.
	2	The zails of Sohowala, Khiuwali, Rori and Kalanwali of the Sirsa tahsil.
	3	The tahsil of Sirsa, excluding the zails of Sohowala, Khiuwali, Rori and Kalanwali and the tahsil of Fatehabad, excluding the zail of Ratia.
Karnal, Rohtak and Gurgaon.	4	The districts of Karnal, Rohtak and Gurgaon.
Ambala and Simla	5	The tahsils of Ambala, Naraingarh and Jagadhri.
	6	The zails of Mubarakpur, Baqarpur, Sanetta, Sohana, Kharrar, Chimi Kalan, Grangan, Manimazra and Kali Bar of the Kharrar tahsil and the district of Simla.
	7	The rest of the tahsil of Kharrar.
	8	The zails of Bela, Hawara, Amralli, Dhanauri, Morinda and Khant of the tahsil of Rupar.
	9	The rest of the tahsil of Rupar.
Hoshiarpur and Kangra	10	The Kangra district and the Una tahsil of the Hoshiarpur district.
	11	The tahsil of Dasuya excluding the zails of Kandhala Sheikhan and Jaura.
	12	The zails of Kandhala Sheikhan and Jaura in the Dasuya tahsil, and the zails of Argowal, Garhdiwala, Chotala, and Janauri in the Hoshiarpur tahsil.
	13	The zails of Bullowal, Hariana, Basi Umarkhan, Nanda Chaur, Pathralian, Badala Mahi, Basi Nau, and Basi Khwaju in the Hoshiarpur tahsil.
	14	The zails of Khanaura, Saido Patti, Jahan Khelan, Chak Sadu, Tunuli, and Badla in the Hoshiarpur tahsil, and the zail of Jandoli in the Garhshankar tahsil.
	15	The zails of Mahilpur, Nangal Thandal, Kharrar, Achharwal, Nangal Kalan and Mugowal in the Garhshankar tahsil.

¹Substituted by the Sikh Gurdwaras (Amendment) Act, 1926 (IV of 1926), published in the Punjab Gazette, Part I, dated April 30, 1926, pp. 378-386, s. 5.

²Omitted "column 4" by the Sikh Gurdwaras (Amendment) Act, 1944 (XI of 1944), published in the Punjab Gazette (Extraordinary), dated January 17, 1945, pp. 5-10, s. 51.

District	Serial No. of Constituency	Constituency
	16	The Garhshankar tahsil excluding the zails of Mahilpur, Jandoli, Nangal Thandal, Kharrar, Achharwal, Nangal Kalan and Mogowal.
Jullundur	17	Sadr Police Station area less the zails of Sura and Naugajja, but including City and Cantonment Police Station areas.
	18	Police Station areas of Kartarpur and Ghogpur, and the zails of Sura and Naugajja.
	19	Police Station area of Adampur.
	20	Police Station area of Nakodar less zail Khanpur Dhadda.
	21	Police Station area of Shahkot and the part of zail Khanpur Dhadda which lies in Nakodar Police Station area.
	22	Police Station area of Nurmahal less the zails of Bundala, Pharwala and Sarhali.
	23	The zails of Bundala, Pharwala, Sarhali, Rurka Kalan, Sargondi and Gura.
	24	The Police Station area of Phillaur less the zails of Rurka Kalan, Sargondi and Gura.
	25	The zails of Kultham, Pharala, Baharwal, Huen and Mukand pur.
	26	Police Station area of Banga less Constituency No.25 above and the zail of Raipur.
	27	Police Station area of Rahon and the zail of Raipur.
Ludhiana	28	The zails of Rajewal Rajputan, Machhiwara, Ladhran, Powat, Mal Mazra, Samrala and Nagra of the Samrala tehsil.
	29	The rest of the Samrala tahsil.
	30	The zails of Mallah, Lakha, and Bassian of the Jagraon tahsil.
	31	The zails of Raikot, Akalgarh and Mohi of the Jagraon tahsil.
	32	The zails of Ghalib Kalan, Jagraon, Kaonke and Rumi of the Jagraon tahsil.
	33	The rest of the Jagraon tahsil
	34	The zails of Gujarwal, Pakhowal, Andlu and Pakhoke.
	35	The zails of Ghungrana, Raipur, Shankar and Rachhin.
	36	The zails of Malaudh, Ber, Hans and Bagrian.
	37	The zails of Baddowal, Lalton, Dakha, Nurpur and Ludhiana.
	38	The zails of Gil, Dhandari and Sahnewal.
	39	The rest of the tahsil of Ludhiana.
Ferozepore	40	The zails of Nathana, Mehraj, Lahra, Mohabbat, Bhucho and Bhucho Khurd of the tahsil of Ferozepore.

District	Serial No. of Constituency	Constituency
	41	The zails of Mudki, Sulhani and Syanwala of the tahsil of Ferozepore and the zails of Kila Gudda, Makhu, Khadur, Mallanwala, Khosa Dal Sing and Wara Waryam Singh of the tahsil of Zira.
	42	The rest of the tahsil of Ferozepore and the zails of Ghubaya, Bagake, Kheireke, Panjeke, Mohanke Hithar and Guru Har Sahai of the tahsil of Muktsar.
	43	The rest of the tahsil of Zira excluding the zail of Bankhandi.
	44	The zail of Bankhandi of the tahsil of Zira and the zails of Salhina, Daroli Bhai and Ghal Kalan of the tahsil of Moga.
	45	The zails of Dala, Rania and Badhani Kalan of the tahsil of Moga.
	46	The zails of Himmatpura, Raonta and Mari of the tahsil of Moga.
	47	The zails of Sukha Nand and Roda of the tahsil of Moga.
	48	The zails of Gholia Kalan, Bagha Purana and Bhalur of the tahsil of Moga.
	49	The rest of the tahsil of Moga.
	50	The zails of Jhomba, Kot Bhai and Chak Sherewala of the tahsil of Muktsar.
	51	The zails of Doda and Muktsar Khas.
	52	The rest of the tahsil of Muktsar.
	53	The zails of Beduwali, Bhularwali, Roranwala, Situ Ganun, Abohar, Kandwala, Amarkot, Ganjal, Jandwala, Mirasangla, Nihal Khera, Jhomianwali and kundal of the tahsil of Fazilka.
	54	The rest of the tahsil of Fazilka.
Lahore	55	The zails of Lahore, Baghbanpura and Awan Dhairwala, Ichhra and Bhasin of the tahsil of Lahore.
	56	The zails of Her, Padhana and Jhaman of the tahsil of Lahore.
	57	The rest of the tahsil of Lahore.
	58	The zails of Mian ke Kaur, Balloke, Hanjra, Waryamwala, Pattoki and Bughiana Kalan of the tahsil of Chunian.
	59	The rest of the tahsil of Chunian.
	60	The zails of Sur Singh and Rajoke of the tahsil of Kasur.
	61	The zails of Patti and Sabrai of the tahsil of Kasur.
	62	The zails of Jaura, Sahjra, Burj Kalan, Waltoha and Algon of the tahsil of Kasur.
	63	The rest of the tahsil of Kasur.
Amritsar	64	The Municipal and Cantonment areas of Amritsar.

District	Serial No. of Constituency	Constituency
	65	The zails of Verka and Gilwali.
	66	The zails of Mirankot, Majitha and Tarpai.
	67	The zails of Jandiala, Fatehpur and Mallian.
	68	The zails of Rupowali and Mattewal.
	69	The zails of Tarsikka Mehta and Sheron Bagha.
	70	The zails of Chima Bath and Butala.
	71	The zails of Karyal, Kohala, Chawinda, Bullarwal, Bhindi Aulkh and Bhilowal.
	72	The zails of Sainsra, Raja Sansi, Ajnala, Kamalpura, Sidhar and Gaggomahal.
	73	The zails of Atari, Bhakna, Naushera Dhala and Kasel.
	74	The zails of Tarn Taran and Rasulpur.
	75	The zails of Panjwar and Manochahil.
	76	The zails of Nagoke, Kang, Jalalabad and Vairawal.
	77	The zails of Sirkhali and Raniwala.
	78	The zails of Jamarai and Naushera Panuan.
Gurdaspur	79	The tahsils of Pathankot and Shakargarh and the zails of Marara, Mirzapur and Dugari of the tahsil of Gurdaspur.
	80	The zails of Buchanangal, Gurdaspur, Dhamrai, Gurdasnangal, Sohal and Bianpur of the tahsil of Gurdaspur.
	81	The rest of the tahsil of Gurdaspur excluding the zails of Boharwadala and Kalanaur.
	82	The zails of Boharwadala and Kalanaur of the tahsil of Gurdaspur and the zails of Udowali Kalan Dher and Singhpora of the tahsil of Batala.
	83	The zails of Dholpur, Marar, Serah and Chhachhrialala of the tahsil of Batala.
	84	The zails of Chaudhriwala, Bhullar, Batala and Dalla of the tahsil of Batala.
	85	The rest of the tahsil of Batala.
Sialkot	86	Sialkot tahsil and the following zails of the Daska tahsil:– Sambrial I. Sambrial II. Bhopalwala. Malkhanwala. Sahowala.

District	Serial No. of Constituency	Constituency
	87	The rest of the Daska tahsil and the following zails of the Pasrur tahsil:— Sirangi. Saukanwind. Bhuler.
	88	The rest of the Pasrur tahsil and the following zails of the Narowal tahsil:— Bahlolpur. Khakh. Chahar Bhatti. Jaistiwala. Dhamthal.
	89	The rest of the Narowal tahsil.
Gujranwala	90	The tahsils of Hafizabad and Wazirabad and the city of Gujranwala.
	91	The Police Station areas of Gujranwala Sadr, Wandhu and Kamoke.
	92	The Police Station areas of Qilla Didar Singh and Naushera Virkan.
Sheikhupura	93	Sheikhupura East containing the following zails:— Sheikhupura, Jhabran, Kaloke, Chuharkana, Ajnianwala, Khangah Dogran, Chhinne, Bahalike, Karyal and Bhikhi.
	94	Sheikhupura West containing the zails of Mangat, Marh Balochan, Sangla (Sialkot), Sangla (Gurdaspur), Dhaban, Pacca Dalla, Shahkot, Karkan and Mananwala.
	95	The Nankana Sahib tahsil with the addition of the zails of Mohlan and Innuana of the Shikhpura tahsil.
	96	The tahsil of Shahdara.
Gujrat	97	The tahsils of Gujrat and Kharian.
	98	The tahsil of Phalia.
Shahpur	99	The tahsil of Sargodha.
	100	The rest of the district of Shahpur.
Jhelum	101	The district of Jhelum.
Rawalpindi	102	The tahsils of Murree and Rawalpindi.
	103	The tahsils of Gujar Khan and Kahuta.
Attock and Mianwali	104	The districts of Attock and Mianwali.

District	Serial No. of Constituency	Constituency
Montgomery ¹	105	The Police Station areas of Nur Shah, Montgomery, Burjwala, Naiwala and Harappa in the Montgomery tahsil and the part of Police Station area of Kamir included in Montgomery tahsil.
	106	The Police Station areas of Chichawatni, Kamalai, Shahkot, Nathuwala and Kassowal in the Montgomery tahsil.
	107	The tahsil of Okara.
	108	The tahsil of Dipalpur.
	109	The tahsil of Pakpattan.
Lyallpur ²	110	The tahsil of Samundri excluding the zail of Tarkhani.
	111	The zails of Tarkhani, Pakka Anna, Yakkar, Khairwala and Tawan.
	112	The rest of the tahsil of Toba Tek Singh.
	113	The zails of Jassuana, Satiana, Dangali, Naurang, Dulchi, Nahra and Rurala.
	114	The zails of Hitharwali, Pauliani, Badwala and Jaranwala.
	115	The zails of Uqbana, Lyallpur ³ , Awagat, Khurrianwala, Salarwala, Lodhranwala, Jhumra and Beranwala.
	116	The zails of Niwan, Sarshamir and Narwala.
	117	The zails of Dijkot, Roda Koru, Gidarwala, Khanuana and Thikriwala.
Jhang	118	The district of Jhang.
Multan	119	The district of Multan.
Muzaffargarh and Dera Ghazi Khan.	120	The districts of Muzaffargarh and Dera Ghazi Khan.

¹Now 'Sahiwal'.

²Now 'Faislabad'.

³Now 'Faislabad'.